

VILLAGE OF ROCKVILLE CENTRE

ONE COLLEGE PLACE, P.O. BOX 950
ROCKVILLE CENTRE, N.Y. 11571-0950

FRANCIS X. MURRAY, MAYOR
KATHLEEN BAXLEY, TRUSTEE
EMILIO F. GRILLO, TRUSTEE
KATIE CONLON, TRUSTEE
GREGORY P. SHAUGHNESSY, TRUSTEE



PURCHASING DEPARTMENT

516/678-9213

PUBLISHED SEALED BID

BID NO. 2603CP1(1177)

DATED: 02/19/2026

DESCRIPTION: **MISCELLANEOUS ASPHALT IMPROVEMENTS**
(VARIOUS LOCATIONS)

OPEN DATE: **MARCH 5, 2026**

TIME: **11:00 AM**

MUST BE COMPLETED BY VENDOR

PRINT VENDOR NAME: _____

VENDOR SIGNATURE: _____

PHONE: _____

FAX: _____

EMAIL ADDRESS: _____

INSTRUCTIONS TO VENDORS - PLEASE READ

1. THE VILLAGE OF ROCKVILLE CENTRE IS A GOVERNMENT SUBDIVISION AND IS EXEMPT FROM SALES, EXCISE & OTHER SUCH TAXES.
2. ALL BIDS WILL BE OPENED AT THE MUNICIPAL BUILDING, ONE COLLEGE PLACE, ON THE DATE SHOWN ABOVE AT 11:00 AM EASTERN TIME.
3. MUST BE RETURNED IN A SEALED ENVELOPE WITH OPENING DATE AND BID NUMBER CLEARLY AND PROMINENTLY MARKED.
4. ATTACHED NON-COLLUSION CERTIFICATE MUST BE RETURNED WITH BID.
5. STATEMENT OF EQUALITY IS ATTACHED.
6. THIS BID WILL BE AWARDED ON THE BASIS OF INDIVIDUAL ITEMS OR AS LUMP SUM WHICHEVER IS IN THE BEST INTERESTS OF THE VILLAGE OF ROCKVILLE CENTRE.
7. FAILURE TO REPLY TO THIS REQUEST FOR QUOTATION WITH A BID OR WITH "NO BID" MAY RESULT IN YOUR FIRM BEING ELIMINATED FROM OUR BIDDERS LIST.
8. CASH DISCOUNTS WILL BE A CONSIDERATION IN THE AWARD OF THIS BID.
9. ADDITIONAL COSTS INCLUDING BUT NOT LIMITED TO FREIGHT, DELIVERY OR SET UP CHARGES WILL BE A CONSIDERATION IN THE AWARD OF THIS BID.
10. ALL WORK MUST BE PERFORMED WITHIN THE LAWS OF THE NYS LABOR DEPARTMENT.

Public Notice to Bidders

Sealed Bids will be received by the Purchasing Department of the Village of Rockville Centre, One College Place, Rockville Centre, New York for the matter stated below until 11:00 am prevailing time on **March 5, 2026** at which time they will be publicly opened and read aloud. The contract will be awarded as soon thereafter as practicable for:

MISCELLANEOUS ASPHALT IMPROVEMENTS

(VARIOUS LOCATIONS)

Bid No. 2603CP1(1177)

The contract documents, specifications and plans can be examined on the Village's website at www.rvcny.gov. Follow the link to the Purchasing Department.

All questions should be directed to the Purchasing Department. Please contact Lisa Strazzeri via email only at Lstrazzeri@rvcny.us. Questions must be submitted no later than February 26, 2026.

Award of Contract will be made to the lowest responsible bidder in accordance with applicable provisions of the law. The Village reserves the right to reject all bids or make such determination as in the best interests of the Village, as provided by law.

Purchasing Department
Lisa Strazzeri
Purchasing Agent
516-678-9213

VILLAGE OF ROCKVILLE CENTRE



SPECIFICATIONS

FOR

MISCELLANEOUS ASPHALT IMPROVEMENTS (VARIOUS LOCATIONS)

CY-2026



INSTRUCTIONS TO BIDDERS

REFERENCES

SUBMITTED BY: _____

DATE: _____

Please list (3) references concerning the work performed/products sold similar to this Bid.

Reference #1: Company Name: _____

Contact: _____

Address: _____

Telephone #: _____

Reference #2: Company Name: _____

Contact: _____

Address: _____

Telephone #: _____

Reference #3: Company Name: _____

Contact: _____

Address:

Telephone #: _____

Please fill in this information and return this sheet WITH YOUR BID PACKAGE.

INSTRUCTIONS TO BIDDERS

INCORPORATED VILLAGE OF ROCKVILLE CENTRE,
NASSAU COUNTY, NEW YORK

SECTION A: PROPOSALS - FORM

All bids must be made upon the forms provided and shall state in figures and writing the amount bid for each item as shown. Proposals that contain any omissions, erasures, alterations, addition or items not called for in the itemized proposals or that contain irregularities of any kind, may be rejected as informal.

SECTION B: BIDS - SUBMISSION AND OPENING

Proposals for this work will be received by the Purchasing Department of the Village of Rockville Centre, at the time and location designated in the NOTICE TO BIDDERS, at which time they will be publicly opened and read.

Each proposal must be enclosed in a sealed envelope endorsed on the outside with the name of the project and the name of the bidder and date of its presentation.

SECTION C: COMPLETENESS OF BID

The bidder will furnish all material, machinery and labor required to construct the work in full accordance with the plans and specifications and instructions of the Owner or the Owner's authorized representative.

Bids are to include all expenses incidental to the completion of the work as specified or shown.

SECTION D: AWARD OF CONTRACT

Award of Contract will be made only to the lowest responsible bidder whose proposal shall comply with all the provisions required. The Village reserves the right to reject any and all bids if, in their opinion, a bid fails to conform to legal requirements or the interest of the Village is not maintained. The bidder must be prepared, if requested by the Purchasing Department, to present evidence of experience, ability and financial standing.

SECTION E: SIGNATURES AND REFERENCES

All bids must be signed by the individual making the bid; or if a partnership by one of the partners thereof; or if a corporation or other legal entity by an officer thereof or other duly authorized signatory; or if by a person doing business under an assumed name a statement that a certificate for doing business has such as been duly filed according to law.

Bids must state the names of all persons interested as principals together with their names and addresses and must be signed by the bidder with the bidder's residence and business addresses (not post office box).

Together with the bid, the bidder shall furnish the names and addresses of three references (local if possible) for which the bidder has completed work of a similar nature and size to the job herein described. The references shall be complete and shall include the names of the officials to whom inquiries may be addressed.

If requested the successful bidder shall submit a current financial statement with profit and loss statement for the last full year of operation.

SECTION F: BID DEPOSIT

This section is intentionally left blank.

SECTION G: PERFORMANCE BOND and LABOR MATERIAL BOND

Before commencing work, the successful bidder shall provide from a recognized surety company a guarantee that if a contract is awarded to the bidder, the surety company will supply bond to the bidder. The bond shall be in force up to and including one (1) year after date of contract signing. The "BOND" shall be executed by a surety company acceptable to the Village, in an amount equal to one hundred percent (100%) of the Contract. The cost of such bond is to be borne by the bidder.

SECTION H: MAINTENANCE BOND

A separate maintenance bond provided by the successful bidder shall take effect upon final payment of the work by the Village and remain in effect for a period of two (2) years. The maintenance bond shall be executed by a surety company acceptable to the Village, for the guarantee period. The maintenance bond shall be in an amount equal to one hundred (100%) of the total amount of the final Contract price.

SECTION I: EXECUTION OF CONTRACT

Failure of the successful bidder to enter into a Contract in accordance with the proposal and/or to meet the requirements of the Village as set forth in these instructions and specifications, pursuant to such contract, within ten (10) work days after notice of the acceptance of this bid has been mailed, by Certified Mail, to the address given in the proposals, shall give the Village the right to recall and reject this bid. In the event that the successful bidder fails to enter into Contract as specified above, the Bid Bond or Bid Deposit of the bidder will be forfeited to the Village of Rockville Centre and possible exclusion from further bids for the Village of Rockville Centre.

SECTION J: INSURANCE

The independent contractor shall maintain at a minimum the following insurance giving evidence of same to Inc. Village of Rockville Centre on the form of **Certificates of Insurance**, copies of the **General Liability Declaration Page** and copy of the **Additional Insured Endorsement**, providing 30 days notice of cancellation, non-renewal or material change. New York State licensed carrier is preferred; any non-licensed carriers will be accepted at the Municipalities discretion. The insurance carrier must have an A.M. Best Rating of at least A- IX. All subcontractors must adhere to the same insurance requirements. NOTE THAT FOR ALL POLICIES IN WHICH THE VILLAGE OF ROCKVILLE CENTRE, AND/OR ITS OFFICIALS, EMPLOYEES OR VOLUNTEER IS REQUIRED TO BE NAMED AS AN ADDITIONAL INSURED, ENDORSEMENTS TO THE POLICY ARE REQUIRED IN ADDITION TO CERTIFICATES OF INSURANCE.

I. Workers Compensation and NYS Disability

Coverage	Statutory
Extensions	Voluntary Compensation; All States Coverage Employers Liability - Unlimited

II. Commercial General Liability

Coverage and Limits	Occurrence - 1988 ISO or equivalent	
	General Aggregate	\$2,000,000
	Products & Completed Operations	\$2,000,000
	Personal & Advertising Injury	\$1,000,000
	Per Occurrence Limit	\$1,000,000
	Fire Damage	\$ 50,000
	Medical Expense	\$ 5,000

Additional Insured	Incorporated Village of Rockville Centre, all elected and appointed officials, employees and volunteers using ISO Form CG2010 (B) or equivalent including products and completed operations coverage.
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Extension - Mandatory	Aggregate Limits to apply per project.
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Full Contractual Liability extending to Hold Harmless. Contractual Liability Insurance is afforded per the definition of "insured contract" as defined in Form CG0001 with no endorsements that amend or restrict the definition of "insured contract".

The general liability is to be primary and non-contributory and does not include any exclusion, limitation or restriction pertaining to exterior work height or "action over" type claims.

Waiver of Subrogation is the favor of the additional insured.

Pollution Liability

If contract involves environmentally regulated substances or hazardous material exposure(s) and/or the disposal of waste or other hazardous substance from the worksite, the contractor shall maintain Contractor's Pollution Liability including Pollution Legal Liability insurance in the amount of at least \$5,000,000. per occurrence for 3rd party liability and clean-up. This coverage is to remain in effect for a minimum of (5) five years following the completion of work. If written on a claims made basis, the retroactive date must pre-date the inception of the contract or agreement.

III. Automobile Insurance

Limit \$1,000,000. Combined Single Limit
Additional Insured Incorporated Village of Rockville Centre, all elected and
appointed officials, employees and volunteers.

IV. Umbrella Liability

Coverage Umbrella Form or Excess Follow Form of primary general
liability and auto liability
Minimum Limit \$5,000,000.

Additional Insured Incorporated Village of Rockville Centre, all elected and
appointed officials, employees and volunteers.

V. BONDS

Bond Form AIA Document A310 Current Edition or
Certified check

Final Bonds 1. Performance and Payment bonds (labor &
materials)
Minimum Limit 100% of Contract Price
2. Maintenance Bond
Minimum Limit 100 % of Performance and
Payment Bond
Term - 2 Year from Acceptance of Job

Bond Form AIA Document A311 current edition.

NOTE: Surety Company must be NYS licensed and on current list of "Surety
Companies Acceptable on Federal Bonds" as published in Federal Register by the
Audit Staff Bureau of Accounts, US Treasury Department.

Incorporated Village of Rockville Centre
INDEMNIFICATION/HOLD HARMLESS AGREEMENT

The Vendor/Contractor shall indemnify and hold harmless the Incorporated Village of Rockville Centre, its officers, employees, and/or agents from any and all liability, damage, loss, claims, demands and actions of any nature whatsoever, for any reason whatsoever, foreseeable or unforeseeable, which arises out of or is connected with, or is claimed to arise out of to be connected with, any undertaking, product, goods, merchandise, products, services sold and/or work supplied, furnished or performed by the Vendor/Contractor or its agents, liability, damages, loss, claims, attorneys and adjusting fees, demands and actions on account of personal injury, death or property loss to the Incorporated Village of Rockville Centre its officers, employees, agents or to any other persons, third parties, or property, but shall not include claims resulting from the gross negligence or willful misconduct of the Incorporated Village of Rockville Centre. This indemnity and hold harmless is intended to be as broad as is permitted by law and to include claims of every kind and nature - for tort, under contract, for strict liability or other liability without fault, under statute, rule, regulation or order; and otherwise.

IN WITNESS WHEREOF, the undersigned has duly executed this Agreement the ____ day
Of _____, 2026.

Witness

Name of Firm

Signature

Address

Date

Contractor's Signature

Print Name

Print Name and Title

SECTION K: INSPECTION OF SITE

All bidders for work under this Contract are required before submitting bids to examine the site to familiarize themselves thoroughly as to the character and scope of all work required to complete the Contract as well as to the facilities for delivering and for handling material at the sites and the conditions and the difficulties that will be encountered in the performance of the work specified at the site. No pleas of ignorance of existing conditions that exist or that may exist or of difficulties that will be encountered in the execution of the work will be accepted as a sufficient excuse for any failure or omission on the part of the bidder to fulfill in every detail all the requirements of this work, or will be accepted as a basis for any claims whatsoever for extra compensation.

SECTION L: NO SUBLETTING ALLOWED

The bidder shall not assign, transfer, convey, sublet, or otherwise dispose of the award of this contract or of its rights, title or interest therein or power to execute this contract to any other persons, company or corporation, without the previous consent in writing of the Village of Rockville Centre.

SECTION M: NO DISCRIMINATION

The bidder in hiring employees for the performance of the work under this Contract shall not discriminate against any person who is qualified and available to perform the work and shall not discriminate against any person by reason of race, sex, creed, handicap, or color.

SECTION N: PREFERENCE TO NEW YORK CITIZENS

The bidder shall give preference to citizens of the State of New York for employment in connection with the performance of this Contract.

SECTION O: NYS Law

All bids and proposals must conform to the applicable requirements of New York General Municipal Law Article 5-A and the New York Labor Law. Please note the requirements of the General Municipal Law, and particular section 101 and 103, with respect to the required content of bids and proposals. Please also note the provisions of the Labor Law with respect to payment of prevailing wages.

SECTION P: RESERVATION OF RIGHTS

The Board of Trustees of the Village of Rockville Centre, New York, reserves the right to reject any and all bids, and to waive any informality in the proposals received, and to accept any proposal which they deem to be most favorable to the interest of the Village

SECTION Q: WITHDRAWAL OF BIDS

No proposals can be withdrawn after the time fixed for receiving bids has expired.

SECTION R: ENGINEER

"Engineer" as referred to herein shall mean the person in charge of project representing the Village of Rockville Centre.

SECTION S:

All bids and proposals must include a W-9 Request for Taxpayer Identification Number and Certification.

SECTION T: INCORPORATION INTO CONTRACT

The Contract shall incorporate all of the Instructions to Bidders and Specifications as contained herein. Also incorporated into the Contract as if set forth in full are all provisions required by the laws of the United States or the State of New York to be incorporated or included in contracts for work, labor, services and materials of a type which are the subject of this contract.

SECTION U: CANCELLATION

This Contract may be canceled or terminated by the municipality without incurring any penalty or damages on account of such cancellation or termination, but any moneys owing under this Contract for goods delivered or work done prior to the cancellation or termination shall be paid pursuant to Section 103-a of the General Municipal Law.

SECTION V: MINIMUM WAGES

All wages paid to employees of the bidder for work performed within the State of New York must not be less than the minimum as specified by applicable law, a copy of the wage rates schedule shall be attached to the Contract agreement for the classifications of labor, which the bidder intends to employ.

SECTION W: NON- COLLUSION

Each bidder must submit with its proposal an executed copy of Statement of Non-Collusion included herewith.

INCORPORATED VILLAGE OF ROCKVILLE CENTRE, NEW YORK

STATEMENT OF EQUALITY

Reference to trade names, manufacturer's name, minute details and/or methods of manufacture including material specifications, and/or model numbers in the specifications affixed hereto is merely intended to indicate a standard of excellence and/or more suitably detail and explain the type of product desired. Variations from specifications which do not materially affect the operational capability, the ease of maintenance, the physical ability to fit into space availability, the long time operational economics and/or spare parts stock and/or procurement shall not preclude the products of any and/or all manufacturers from being given due consideration in respect to the award of contract. If your intention is to provide an approved equal, you must supply comprehensive documents that your product meets the specifications set forth in this bid. You must also be prepared to give at least (2) job site locations or at least (2) customers currently using this product, so that the Village can better evaluate your proposed alternate. If this documentation is not accompanied with the submission of your quote, your bid may be disqualified.

PREVAILING WAGES

(See attached NYSDOL Prevailing Wage Sheet)

The New York State Department of Labor will no longer be providing individually printed copies of the prevailing wage schedule. A prevailing rate case (PRC) number has been applied for.

All other requirements concerning the schedule remain in place. Contractors are still required to post the schedule on the job site and provide copies of the schedule to all subcontractors.

The schedule is available at the Department of Labor web site (www.labor.state.ny.us). In the event you do not have web access please contact the Purchasing Department, Village of Rockville Centre at (516) 678-9213.

If you have any questions you may contact the NYS Department of Labor, Bureau of Public Work at (518) 457-5589.

Company: _____

Print name: _____

Signature: _____



Prevailing Wage

[Home](#) > Prevailing Wage

[Wage Schedule](#) · [Submit Notice Of Award](#) · [Submit Notice Of Project Completion](#)

PRC#: 2026002455

Acceptance Status: Accepted Article 8

Type of Contracting Agency: Village

Contracting Agency

Send Reply To

Village of Rockville Centre
mario bento
Assistant Engineer
10 sunrise highway
rockville Centre NY 11731

(516) 678-9271
(516) 766- 0879 Fax
mbento@rvcny.us

Project Information

Project Title Misc. Asphalt Improvents
Description of Work Proposed to repair asphalt roadways as needed.
Contract Id No.
Project Location(s) Various Locations
Route No / Street Address Various roadways
Village / City rockville Centre
Town rockville Centre
State / Zip NY 11571
Nature of Project Heavy and Highway Construction (New and Repair)
Approximate Bid Date 03/05/2026
Checked Occupation(s) Construction (Building, Heavy & Highway, Sewer, Water, Tunnel)

Applicable Counties

Nassau

Department of Labor

[Accessibility](#)

[Contact](#)

[Language Access](#)

[Privacy Policy](#)



INSTRUCTIONS ACCOMPANYING

THE AFFIDAVIT OF NON-COLLUSION

- 1) The Affidavit of Non-Collusion must be executed by a member, officer or employee of the bidder. It must be executed by the person who makes the final decision with regard to the prices and amount quoted in the bid. If for good reason that person is not to execute the Affidavit, the Affidavit may be executed by another member, officer or employee of the firm who has been authorized in writing by such person to make the statements set out in the Affidavit on his or her behalf and on the behalf of the firm. The written authorization must be attached to the Affidavit at the time of its submission.
- 2) Bid rigging, combinations or conspiracies to restrain competition, and the making of false sworn statements in connection with the submission of bids are unlawful and may be subject to criminal prosecution. It is imperative that the person who will execute the Affidavit examine it carefully before signing it and assure himself or herself that each of the statements in it are true and accurate. If for any reason the affiant cannot attest to each of the statements in the Affidavit without qualification or reservation, the necessary qualification or reservation must be noted in the Affidavit. The facts and circumstances on which such qualification or reservation are based must be set out in a writing submitted as a part of or together with the executed Affidavit.
- 3) In the case of a bid submitted by a joint venture, each party to the venture must be identified in the bidding documents, and an Affidavit must be submitted separately on behalf of each party.
- 4) The term "complementary bid" as used in the Affidavit has the meaning commonly associated with that term in the procurement business and construction industry, and includes the knowing submission of bids higher than the bid of another firm, any intentionally high or non-competitive bid, and any other form of bid submitted for the purpose of giving a false appearance of competition.
- 5) In order to carry out the requirements of paragraph 7 of the Affidavit, the affiant must make diligent inquiry of all other persons employed by or associated with the bidder with responsibilities relating to the preparation, approval or submission of the bid. Such inquiries need not be made of secretarial or clerical employees, and other persons performing purely ministerial functions, who do not have either actual or apparent authority to act on behalf of the firm with regard to the project.
- 6) Failure to file an Affidavit in compliance with these instructions may result in disqualification of the bid.

AFFIDAVIT OF NON-COLLUSION

(To Accompany Any Bids Submitted to the Incorporated Village of Rockville Centre.)

I hereby attest that I am the person responsible within my firm for the final decision as to the price(s) and amount of this bid or, if not, that I have written authorization, enclosed herewith, from that person to make the statements set out below on his or her behalf and on behalf of my firm.

I further attest that:

- 1.The price(s) and amount of this bid have been arrived at independently, without consultation, communication or agreement for the purpose of restricting competition with any other contractor, bidder or potential bidder.
- 2.Neither the price(s) nor the amount of this bid have been disclosed to any other firm or person who is a bidder or potential bidder on this project, and will not be so disclosed prior to bid opening.
- 3.No attempt has been made or will be made to solicit, cause or induce any firm or person to refrain from bidding on this project, or to submit a bid higher than the bid of this firm, or any intentionally high or non-competitive bid or other form of complementary bid.
- 4.The bid of my firm is made in good faith and not pursuant to any agreement or discussion with, or inducement from, any firm or person to submit a complementary bid.
- 5.My firm has not offered or entered into a sub-contract or agreement regarding the purchase of materials or services from any firm or person, or offered, promised or paid cash or anything of value to any firm or person, whether in connection with this or any other project, in consideration for an agreement or promise by any firm or person to refrain from bidding or to submit a complementary bid on this project.
- 6.My firm has not accepted or been promised any subcontractor or agreement regarding the sale of materials or services to any firm or person, and has not been promised or paid cash or anything of value by any firm or person, whether in connection with this or any other project, in consideration for my firm's submitting a complementary bid or agreeing to do so, on this project.

7. I have made a diligent inquiry of all members, officers, employees, and agents of my firm with responsibilities relating to the preparation, approval or submission of my firm's bid on this project and have been advised by each of them that he or she has not participated in any communication, consultation, discussion, agreement, collusion, act or other conduct inconsistent with any of the statement and representations made in the Affidavit.

Signature & Company Position

Type Name & Company Position

Company Name

Date Signed

Sworn to before me this

_____ Day of the month

Of _____, 2026

Notary Public

PERFORMANCE BOND and LABOR MATERIAL BOND

This Bid requires a Performance Bond and Labor Material Bond. If you are the successful bidder, we will expect the Bond no later than ten (10) calendar days after receipt our Letter of Intent. So that we are aware of your bonding capabilities,

PLEASE SIGN THIS FORM AND RETURN IT IN YOUR BID ENVELOPE.

I _____ of _____
(NAME) (COMPANY NAME)

will obtain a Performance Bond/Labor Material Bond and it will be forwarded to you no later than ten (10) calendar days after your Letter of Intent is received by us.

Signature: _____

Date: _____

BID No.: _____

MAINTENANCE BOND

This Bid requires a two (2) year Maintenance Bond. If you are the successful Bidder, we will expect this Bond upon completion of work. Date of Bond will be no earlier than date of final acceptance, so that we are aware of your bonding capabilities.

PLEASE SIGN THIS FORM AND RETURN IT IN YOUR BID ENVELOPE.

I _____ of _____
(NAME) (COMPANY NAME)

will obtain a Maintenance Bond, and it will be forwarded to you immediately upon completion of work.

Signature: _____

Date: _____

BID No.: _____

PAYMENT AFFIDAVIT

Prior to releasing any payments, the contractor shall furnish the owner, in the manner required by the owner, that all of the contractor's obligations associated with the specific payment request, to sub-contractors, vendors, laborers, equipment or other material supplies or other third parties in connection the with the project, have been paid or otherwise satisfied.

Failure to provide a Payment Affidavit, for partial/final payment request, shall be grounds for rejection of any such payment request.

PLEASE SIGN THIS FORM AND RETURN IT IN YOUR BID ENVELOPE.

I _____ of _____
(NAME) (COMPANY NAME)

will provide all required Payment Affidavits with all payment requests.

Signature: _____

Date: _____

BID No.:

IRAN DIVESTMENT ACT CERTIFICATION

As a result of the Iran Divestment Act of 2012 (Act), Chapter 1 of the 2012 Laws of New York, a new provision has been added to the State Finance Law (SFL), § 165-a, effective April 12, 2012. Under the Act, the Commissioner of the Office of General Services (OGS) will be developing a list (prohibited entities list) of "persons" who are engaged in "investment activities in Iran" (both are defined terms in the law). Pursuant to SFL § 165-a(3)(b), the initial list is expected to be issued no later than 120 days after the Act's effective date, at which time it will be posted on the OGS website.

By submitting a bid in response to this solicitation or by assuming the responsibility of a Contract awarded hereunder, Bidder/Contractor (or any assignee) certifies that once the prohibited entities list is posted on the OGS website, it will not utilize on such Contract any subcontractor that is identified on the prohibited entities list.

Additionally, Bidder/Contractor is advised that once the list is posted on the OGS website, any Contractor seeking to renew or extend a Contract or assume the responsibility of a Contract awarded in response to the solicitation, must certify at the time the Contract is renewed, extended or assigned that it is not included on the prohibited entities list.

During the term of the Contract, should the Village of Rockville Centre (the "VILLAGE") receive information that a person is in violation of the above-referenced certification, the VILLAGE will offer the person an opportunity to respond. If the person fails to demonstrate that it has ceased its engagement in the investment which is in violation of the Act within 90 days after the determination of such violation, then the VILLAGE shall take such action as may be appropriate including, but not limited to, imposing sanctions, seeking compliance, recovering damages, or declaring the Contractor in default.

The VILLAGE reserves the right to reject any bid or request for assignment for an entity that appears on the prohibited entities list prior to the award of a contract, and to pursue a responsibility review with respect to any entity that is awarded a contract and appears on the prohibited entities list after contract award.

Signature: _____

Print Name: _____

Title: _____

Company Name: _____

Date: _____

Nassau County, NY

If the Board of Trustees of the Village votes to award the Vendor/Contractor the contract for the project described in the Bid Specifications, the Village will issue a contract/purchase order to the person or legal entity submitting the bid/proposal and named on the submitted W-9.

Please sign below and return it with your bid response.

Signature: _____
 Title: _____
 Date: _____

Request for Taxpayer Identification Number and Certification

Give Form to the
requester. Do not
send to the IRS.

► Go to www.irs.gov/FormW9 for instructions and the latest information.

Print or type.
See Specific Instructions on page 3.

1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.	
2 Business name/disregarded entity name, if different from above	
3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. Check only one of the following seven boxes. ☐ Individual/sole proprietor or single-member LLC ☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=Partnership) ► _____ Note: Check the appropriate box in the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is not disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner. ☐ Other (see instructions) ► _____	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from FATCA reporting code (if any) _____ (Applies to accounts maintained outside the U.S.)
5 Address (number, street, and apt. or suite no.) See instructions.	Requester's name and address (optional)
6 City, state, and ZIP code	
7 List account number(s) here (optional)	

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number	
or	
Employer identification number	

Part II Certification

Under penalties of perjury, I certify that:

- The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
- I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
- I am a U.S. citizen or other U.S. person (defined below); and
- The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign
Here

Signature of
U.S. person ►

Date ►

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid)

- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)
- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See *What is backup withholding*, later.

EQUAL EMPLOYMENT OPPORTUNITY POLICY STATEMENT

It is the policy of the _____ to provide equal employment opportunity to all people without regard to race, color, sex, religion, age, national origin, disability, or genetics. As head of this firm, I am personally committed to assuring that the _____ will act affirmatively to develop avenues of entry and mobility for minorities, women, individuals with disabilities and Veterans through the following activities.

- Development of programmatic approaches to the elimination of all unjust exclusionary employment practices, policies and consequences:
- Development of educational and training programs for all employees, with emphasis on goals for upgrading minorities, women, individuals with disabilities and Vietnam Era Veterans:
- Development of personnel practices, policies and career ladders to assist and encourage upward mobility of employees restricted to lower levels:
- Development of mechanisms for swift and judicious resolution of complaints of discrimination consistent with out policy and other applicable statutes: and
- Provision of reasonable accommodations to enable qualified individuals with disabilities to enjoy equal employment opportunities and equal terms, conditions and privileges of employment.

To effectuate this policy, a plan has been designed which conforms with all relevant Federal and State non-discrimination laws and regulations including but not limited to: The Civil Rights Act of 1964, as amended: the Rehabilitation Act of 1973, as amended: the Americans with Disabilities Act: the Vietnam Era Veteran's Readjustment Act of 1974: and the New York State Human Rights Law. The plan applies to all job classifications and titles in the (name of contractor) _____ jurisdiction. It governs all (name of contractor) _____ employment policies, practices and actions including, but not limited to: recruitment, hiring, discipline, rate of pay or other compensation, advancement, reclassification, reallocation, promotion, demotion, discharge and employee benefits. The appropriate person/office will be provided with all available resources necessary for the execution of its program responsibilities. Moreover, all managers, supervisors and employees must make consistently diligent efforts to implement this policy in day-to-day program and employment decisions. Affirmative Action considerations will be an integral part of all organizational activities performed in the furtherance of our mission and in meeting out responsibilities to New York State's citizens.

(Print/Type CEO Name)

(CEO Signature & Date)

VILLAGE OF ROCKVILLE CENTRE

PURCHASING DEPARTMENT

ONE COLLEGE PLACE, P.O. BOX 950

ROCKVILLE CENTRE, N.Y. 11571-0950

FRANCIS X. MURRAY, MAYOR
KATHLEEN BAXLEY, TRUSTEE
EMILIO F. GRILLO, TRUSTEE
KATIE CONLON, TRUSTEE
GREGORY P. SHAUGHNESSY, TRUSTEE



LISA STRAZZERI
PURCHASING AGENT

516-678-9213

EMAIL: LSTRAZZERI@ROCKVILLECENTRE.NY.US

Starting December 30, 2024, all contractors and subcontractors submitting bids or performing construction work on public work projects or private projects covered by Article 8 of the Labor Law are required to register with the New York State Department of Labor (NYSDOL) under Labor Law Section 220-i.

Private projects subject to Article 8 of the Labor Law include those covered by Labor Law Sections 224-a (public subsidy funded projects), 224-d (renewable energy systems), 224-e (broadband projects), 224-f (climate risk-related and energy transition projects, and roadway excavations.)

The law defines a “contractor” as any entity entering into a contract to perform construction, demolition, reconstruction, excavation, rehabilitation, repair, installation, renovation, alteration, or custom fabrication. The law defines “subcontractor” as any entity subcontracting with a contractor to perform construction, demolition, reconstruction, excavation, rehabilitation, repair, installation, renovation, alteration, or custom fabrication, which is subject to Article 8 of the Labor Law. Contractors are responsible for verifying that any subcontractors they work with are registered.

Contractors need to register before submitting any new bids or commencing new work on a covered project on or after December 30, 2024. Subcontractors need to register before commencing new work on a covered project on or after December 30, 2024. NYSDOL encourages all contractors and subcontractors to register as soon as possible to obtain a Certificate of Registration to avoid negatively impacting a bidding period or project schedule.

Every contractor submitting a bid or proposal for construction work on a public works project must be registered, and must include a copy of the registration with the bid or proposal.

**MISCELLANEOUS
ASPHALT IMPROVEMENTS
(Various Locations)**

**BID
SCHEDULE OF PRICES**

BID SCHEDULE OF PRICES

	<u>QTY</u>	<u>UNIT COST</u>	<u>AMOUNT BID</u>
<u>ITEM #2X</u>			
<u>UNCLASSIFIED EXCAVATION</u>			
Associated with initial excavation and unsuitable material. (to include tree roots)			
Price per Cubic Yard	<u>800 CY</u>	\$ _____/CY	\$ _____
<u>ITEM #7</u>			
<u>FINE GRADE</u>			
Price per Square Yard	<u>2200 SY</u>	\$ _____/SY	\$ _____
<u>ITEM #16SS-1/16SS-3-DRAINAGE/SEWER CASTING ADJUSTMENTS</u>			
Price per Each	<u>15 EA</u>	\$ _____/EA	\$ _____
<u>ITEM #16E-1/16E-2-ELECTRIC CASTING ADJUSTMENTS</u>			
Price per Each	<u>5 EA</u>	\$ _____/EA	\$ _____
<u>ITEM #36D - TOP ASPHALT RESTORATION</u>			
To be included liquid asphaltic Concrete at job completion			
Price per Ton	<u>200 T</u>	\$ _____/T	\$ _____
<u>ITEM #37 - BASE ASPHALT</u>			
To include tack coat prior to top asphalt as required			
Price per ton	<u>300 T</u>	\$ _____/T	\$ _____
<u>ITEM #58SS-1 - SAW CUTTING ASPHALT PAVEMENT</u>			
Price per Linear Foot	<u>1000 LF</u>	\$ _____/LF	\$ _____
<u>ITEM #58SS-2 - SAW CUTTING CONCRETE PAVEMENT</u>			
Associated with any Concrete Road Panels.			
Price per Linear Foot	<u>500 LF</u>	\$ _____/LF	\$ _____
<u>ITEM #116A -MILLING AND PROFILING</u>			
To include blowing out and sealing cracks			
Price per Square Yard	<u>1400 SY</u>	\$ _____/SY	\$ _____

QTY UNIT COST AMOUNT BID

ITEM #132X-PLOWABLE REFLECTED
HYDRANT MARKERS REPLACEMENT

Price per Each 5 EA \$_____/EA \$_____

ITEM #134X-LOCATE, SAW AND SEAL
JOINTS IN ASPHALT OVERLAYS

Price per Linear Foot 1200 LF \$_____/EA \$_____

ITEM #398 -RECYCLED CONCRETE

Price per Cubic Yard 200 CY \$_____/CY \$_____

ITEM #422LX-TRAFFIC LOOP
REPLACEMENT

Price per each 5 EA \$_____/EA \$_____

ITEM #603 -PAINTED STOP BARS

Price per Linear Foot 300 LF \$_____/LF \$_____

ITEM #RVC4 -4" PAINTED STRIPING
(Yellow, White or Blue)

Price per linear foot 1000 LF \$_____/LF \$_____

TOTAL BID AMOUNT \$_____

In figures

\$_____

In words

NOTES:

- There will be no separate pay item for MPT in this contract. Maintenance and Protection is to be included within items.
- Liquid Asphaltic concrete to be applied at all joints at job completion. There will be no separate pay item for this work (N.S.P.I.)

****The Village reserves the right to limit individual quantities on the project, without any recourse from the successful bidder.**

It is understood that this bid may be withdrawn at any time prior to scheduled time for the opening of bids or any authorized postponement thereof.

Name of Bidder: _____

Address: _____

By: _____

(Title) _____

Bidder must date and sign Form of Bid and fill in all blank spaces; also conform with Requirements and Affidavit. Failure to do so shall be cause for rejection of bid.

Option Years:	First Year	% _____ Inc.
	Second Year	% _____ Inc.

FORM OF BID

It is understood that the approximate quantities shown on the foregoing schedule are solely for the purpose of facilitating the comparison of bids, and that the Contractor's compensation will be computed upon the basis the actual quantities in the completed work, whether they be more or less than those herein.

The undersigned further agrees to comply with the conditions of employment, wage rates and hours of labor set forth in the contract Documents.

It is also understood that this bid may be withdrawn at any time prior to the scheduled time for the opening of bids, or any authorized postponement thereof.

The undersigned further understands and agrees that he/she is, or they are to, finish and provide for the price(s) bid all the necessary material, machinery, implements, tools, labor, services and other items of whatever nature to complete the improvement of the aforementioned project in accordance with the Drawings and Specifications, thereof, which Drawings and Specifications it is agreed are a part of this proposal, and to accept in full compensation therefore the price(s) as set forth on the attached sheets.

The undersigned further declares that he/she, or, they are not in arrears to the Village or any other municipality upon debt or contract, and is not a defaulter, as Surety or otherwise, upon any obligation to the Village.

The undersigned further agrees that if awarded the contract for the work covered by this contract, such work will be completed in the time frame designated by the Engineer.

Legal Name of Person, Firm or Corporation

(Corporate Seal)

By _____

Dated: _____, 20____

SPECIAL CONDITIONS

Rights of Village

In submitting this bid, the Contractor shall understand that the Village reserves the right to increase, decrease or omit any portions of the Contract including individual bid items and entire roadways, without any recourse from the Contractor.

GENERAL CONDITIONS

REASONABLE OMISSIONS: In the event that anything reasonable, necessary or proper to the complete performance of the work has not been shown on the drawings or has not been described in the Specifications clearly, through oversight or palpable error, the Contractor shall execute and provide all such omitted work and things, as if they were separately shown and described without extra charge and according to the direction and satisfaction of the Engineer. Furthermore, in case of any discrepancy between the Plans and these Specifications, the decision of the Engineer shall be decisive thereon. The figured dimensions on the Plans are to be taken as correct and shall take precedence over scaled distances and dimensions. However, the Contractor is required to carefully check all dimensions of structures before beginning work. Should any errors be discovered, the Engineer's attention shall be called to same and properly corrected. All notes on the Plans shall be carefully observed by the Contractor and are to be made a part of the contract.

UNSTABLE SUB-GRADE: Should the results of an unstable sub-grade be discernible during the progress of the work, the entire portion affected shall be excavated and suitable backfill placed, compacted and rolled until a substantial foundation has been obtained.

CONDITION BEFORE ACCEPTANCE: It is essential that all portions of the finished pavement both bituminous and concrete, be so graded that all surface water will drain to the catch basin or other outlets provided and that no depressions are formed where surface water can collect. The work will not be accepted until these requirements are fulfilled.

MATERIAL, BRAND AND TYPE: Wherever in these Plans and Specifications a particular brand, make or material device or equipment is shown or specified, such material, device or equipment is to be regarded merely as a standard. Any other make or brand, which in the opinion of the Engineer is the recognized equal of that specified as to quality of material, workmanship, economy of operation and is suitable for the purpose intended, will be accepted. All material and workmanship, shall, in every respect be in accordance with the best modern practices. Wherever the Contract Drawings. Specifications or directions of the Engineer are in doubt about what is permissible, and/or fail to note the quality of any work, the interpretation that calls for the best quality of materials and workmanship in conformity with modern practice is to be followed.

BASIS OF COMPARING BIDS: Bids will be compared, in part, based on the Engineer's estimate of quantities as shown in the Bid Sheets. There is absolutely no guaranty or implication that the actual quantity of the work will correspond with the estimated quantities. If any error should appear in the extension of the unit prices or the total of the various items, the unit prices will prevail.

REJECTION OF BID: Bidders are warned that, if in the opinion of the Village, any unit or lump sum price or prices are unbalanced or not representative of near value of the cost of the item of the work, then the entire bid may be rejected. The Village shall be the sole judge in these instances and shall exercise the act of rejection at their discretion.

MATERIALS, WORK INCLUDED, COMPENSATION: The Contractor shall furnish all labor, tools, material and equipment necessary to do all work required by the contract. All materials and workmanship shall be in strict accordance with the contract Plans, and special or supplementary Specifications as may be made for this contract and such instructions as may be issued by the Engineer during the progress of work.

The unit price bid for each item shall be full compensation for all work described under that item and shall, in addition, include all of the equipment, labor and material necessary to complete that portion of the contract in a skillful manner and leave same neat, clean and usable. In addition, the Contractor shall be required to protect all the adjoining properties and repair or replace any such properties destroyed during the work of the contract. The following are not paid for separately and shall be included in the price bid for the several items (unless otherwise specified): Excavation, cut and fill, Removal of tress under four (4) inches, Removal of existing structures required for the installation or proper functioning of any item of the contract.

INSPECTION, APPROVAL AND TESTING OF MATERIALS: The Contractor shall submit to the Engineer, representative samples of all materials proposed to be used in the work, and a statement of the source of supply. No materials shall be brought to the site or incorporated in the work unless they have received the Engineer's approval. Notwithstanding the approval of the samples, all materials will be subject to inspection as hereinafter described. Approval of a sample or a shipment does not in itself constitute approval of all of the material. The approval of any material shall not release the Contractor from full responsibility regarding the acceptability of the final work.

All material and workmanship shall always be subject to the Engineer's inspection, approval or rejection. The Engineer shall, at all times have full access to the work. The Contractor shall cooperate with and assist the Engineer in such a manner as may be directed, for the purpose of facilitating inspection and obtaining samples. When work is to be done outside the regular hours, the Contractor shall secure the consent of the Engineer so that an inspector may be present. Should the Engineer reject the material, the rejected material shall immediately be removed from the site of the work and shall not again be brought to the site.

Wherever called for in the Specifications, or ordered by the Engineer, inspection and testing of materials shall be arranged and paid for by the Contractor. The Contractor shall obtain continuous printed charts or tapes of automated proportioning devices used in batch type mixing plants from an approved testing laboratory. Daily or better quality control reports by means of sampling will be required. The laboratory will supply such inspectors at the plant or as otherwise required to insure proper recording and acceptable reports. The cost of these reports, records and inspectors or any other requested by the Engineer, shall be borne entirely by the Contractor.

The selection of bureaus, laboratories and/or agencies for such inspection and testing must be approved by the Engineer.

The number of tests required shall be in accordance with the current requirements of the Nassau County Standard Specifications for the Construction of Highways and Bridges and its addenda.

PERMITS: Permits shall be obtained by and at the expense of the Contractor from the Incorporated Village, Nassau County and any other municipality or agency having jurisdiction thereof, far enough ahead of the work so that there will be no interference with the progress of same.

PROTECTION OF UTILITIES: The Contractor is specifically directed to become familiar with the existence of aerial, surface of subsurface structures of municipal and other public service corporations within and surrounding the construction site. A careful search has been made and all known public or private utilities and other installations within or adjacent to the contract area are shown in their approximate locations on the contract Plans. However there is no guarantee that all existing utilities have been found. The Contractor's attention is also directed to the fact that during the life of this contract utilities may make changes in their facilities. The Contractor will be required to determine the exact locations and elevations of all pertinent structures, utilities and facilities, before construction work and new installations begin, so that there will be no interference with the work. Conflict between existing structures, utilities and facilities and new work shall be ascertained by the Contractor and called to the attention of the Engineer. The Contractor shall have considered these conditions in making this bid.

The Engineer will direct the public utility corporations to shift or remove utility structures that interfere with the work. The Contractor shall not remove any structure or part of a structure owned by a public utility corporation without the approval of the Engineer.

The Contractor shall cooperate with the public utility corporations whose structures (aerial, surface of subsurface) are within the limits of or along the outside of the right-of-way, to make it possible for them to maintain uninterrupted service. The Contractor shall conduct operations in such a way that delays or interferes as little as is practicable, with the work of the utility corporations.

The Contractor shall give the utility corporations not less than 48 hours advanced notice of all operations that may or will include jacking, blasting or excavating.

Utilities shall be protected in a suitable manner and damage to structures and facilities caused by these operations, shall be paid for at the Contractor's expense. All repairs shall be to the satisfaction of the utility company. If the nature of the damage is such as to endanger the satisfactory functioning of the utilities, and, the necessary repairs are not immediately made by the Contractor, the work may be done by the respective owning companies and the cost thereof charged to the Contractor.

It is understood and agreed that the Contractor has considered in the bid all of the permanent and temporary utility appurtenances in their present or relocated positions as shown on the Plans. The Contractor also understands that no additional compensation will be allowed for any delays, inconvenience or damage sustained due to any interference from the utility appurtenances or from the operation of moving them.

SAFETY & TRAFFIC CONTROL: Special precautions shall be taken to barricade all excavations and obstructions, as a safeguard to pedestrian and vehicular traffic. During the period of darkness, an ample number of lights shall be used to warn traffic of all obstructions and hazards. In addition, all pipes, culverts or similar openings that could be entered by children or others, shall be boarded up or sealed to prevent entry.

During the period when it will be impossible for normal access to the homes via pedestrian or vehicular traffic along the line of the work, temporary provisions shall be made so that access can be obtained by means of temporary planking, high performance cold patch or other suitable methods.

The Contractor shall furnish material, labor and equipment at any time, day or night, when necessary, to immediately correct, remedy and prevent washouts, formation of holes, ruts, depressions or any unsafe condition and to make the areas so effected immediately safe and passable for traffic, all as required and/or satisfactory to the Engineer.

The work and material required for this condition shall be provided by the Contractor and paid for at the unit prices bid for the various items of the contract.

REMOVAL OF CURB, SIDEWALK OR ASPHALT PAVEMENT: No additional payment shall be made for the removal of curb, sidewalk or asphalt pavement and the cost thereof shall be included in the unit price bid for the various items, unless otherwise provided.

EXCESS EXCAVATED MATERIAL: All excess materials from excavation shall remain the property of the Village, unless otherwise decided, be delivered and disposed of within the boundary of the Village as directed by the Village, and at no additional expense to the Village. Otherwise, the excess material will become the property of, and properly disposed of by the Contractor at no additional expense to the Village.

COLD WEATHER PROTECTION: Concrete shall not be deposited when the temperature is below 40 degrees F., except under such conditions as the Engineer may direct in writing. If at any time the temperature is, or in the opinion of the Engineer, will drop to 40 degrees F, or below within twenty-four hours, an approved method of protection shall be used, either by the use of heated water and aggregates or by the addition of an anti-freeze. In addition, the necessary steps shall be taken to prevent the concrete from freezing for a period of ten (10) days. In no case shall the concrete be deposited upon frozen subgrade nor shall frozen materials be used in the concrete.

TEMPORARY PAVEMENT: The Contractor shall construct a temporary surface over all areas which have been cut, broken or removed for the installation of pipes, drainage structures, public utilities or any other excavations or where ordered by the Engineer. It shall be a surface maintained with a minimum compacted thickness of two (2) inches of bituminous macadam plant mix conforming to the requirements of Item 36D. The bituminous materials shall be spread, rolled and compacted to the required density. Prior to the replacement of any permanent pavement, the temporary pavement shall be placed as directed or as required and remain for two (2) weeks or as directed by the Engineer. In no event shall temporary pavement be removed unless written authority is received from the Engineer.

Temporary pavement shall be placed over trench areas or areas requiring same immediately after backfilling operations have been completed. In no event shall backfilled areas be without temporary pavement for distances along trench length in excess of five hundred (500) feet or as directed by the Engineer.

The Contractor will be required to maintain the temporary pavement at all times. Said maintenance is to include the filling of ruts or depressed areas with additional material as

required. The Contractor shall keep the traveled way in a safe and satisfactory manner for the movement of public vehicles. After the required period of compaction, the temporary pavement shall be removed, the existing pavement cut back and permanent pavement shall then be installed.

The Contractor is to receive no additional compensation for the work under this condition and the cost of the same is to be included in the various items of the contract, unless otherwise stipulated in the Detail Specifications. This condition will include all the labor, material, tools, equipment and incidentals required for the completion of the work.

REQUIRED PROCEDURES IN THE CONDUCT OF THE PROJECT: Subsequent to the Notice of Award and prior to the Notice to Proceed, the successful Contractor shall submit to the Engineer the names of suppliers for items of the contract, names of subcontractors, if any, and the name and license number of the Professional Land Surveyor who will be performing the Contractor's layout.

No work shall be performed unless the Notice to Proceed has been issued.

The Contractor shall submit to the Engineer cut sheets, diagrams and control sheets indicating stakes and offsets prepared and performed by the Professional Land Surveyor for every phase of the project. These submissions shall include, but not necessarily be limited to layout for curbs, sidewalks, pavement, drains, structures of any kind, sewers and the like. No work shall be performed on any items of the project unless such sheets and diagrams have been approved by the Engineer.

The Contractor is notified that, should this condition be violated without written permission, then such work will not be paid for and in addition thereto may require removal at the expense of the Contractor.

SECURITY FOR FAITHFUL PERFORMANCE: The successful bidder shall execute a Performance and Labor and Materials Payment Bond equal to one hundred percent (100%) of the amount bid, such bond is to be executed by a surety company licensed to do business in the State of New York and acceptable to the Village Attorney; or a bond secured by collateral; or securities approved by the Board of Trustees.

If the successful bidder fails to execute and deliver the bond required by the proposal within fifteen (15) days from the date of award, they forfeit to the Village, as liquidated damages for such failure or refusal, the security deposited with their bid. They will also be liable for and agree to pay to the Village on demand the difference between the price bid and the price for which such contract shall subsequently be relet, including the cost of such reletting, less the amount of such deposit. No plea of mistake in such accepted bid shall be available to the bidder for recovery of their deposit or as a defense to any action upon accepted bid.

After the approval of the bond and execution of the contract and after ten (10) percent of the work has been completed, the certified check for bid security accompanying the proposal will be returned.

POWER OF ATTORNEY: Attorneys-in-fact who sign bonds must file with each bond a certified copy of their power of attorney.

APPARENT SILENCE: The apparent silence of the Specifications as to any detail or the apparent omission from them of a detailed description concerning any work to be done and materials to be furnished shall be regarded as meaning that only the best general practice observed in the latest current construction work is to prevail and that only material and workmanship of first quality is to be used in this connection and all interpretations of these Specifications shall be made upon this basis.

GENERAL NOTE: All highway work under this contract shall be by and in conformity with the 2009 Standard Specifications and Standard Sheets for the Construction of Highways and Bridges of the Nassau County Department of Public Works, including current addenda, except as modified on the plans or in the itemized proposal. The item numbers indicated in the proposal refer to the respective item numbers in the above mentioned Nassau County Specifications.

The suffix "X" following an item number signifies that the County Standard Specification for that item shall apply except as amended by the text following the headings containing the X suffix.

The suffix "SS" following an item number signifies that a special specification applies, including the 200, 300, and 500 series addenda.

Construction of sanitary sewers under this contract shall be by and in conformity with the Revised 1974 Standard Specifications and Details of Construction of Sanitary Sewers of the Nassau County Department of Public Works including current addenda.

Whenever there occurs a conflict in the definitions, phrases or interpretation of meaning between work specifically intended for Nassau County the same intention will be interpreted to apply and hold true for the Incorporated Village. However, if situations occur within the embodiment of the Standard Specifications, which are conflicting in interest, the decision of the Engineer, as to the interpretation of the meaning, will prevail above all others.

RESPONSIBLE REPRESENTATIVE IN ABSENCE OF CONTRACTOR: In case of the absence of the Contractor from the work, a competent, English speaking representative or supervisor shall be on the job site. The supervisor shall follow without any delay, all instructions of the Village or its' representative in the prosecution of the completion of the work and every part thereof in conformity with this contract, and shall have full authority to supply labor, material and equipment, as required.

DEFECTIVE WORK: Upon direction by the Village, the Contractor shall remove and reconstruct, in a satisfactory manner, any part or parts of the work which may be determined by the Village as not having been done in accordance with these Specifications or instructions given by the Village. This work shall be done at the Contractor's expense.

The Village shall be furnished with every reasonable facility for ascertaining that the work is in accordance with the requirements and intention of this contract.

TREE TRIMMING: The Contractor will be required to hire professional tree pruners for trimming trees and shrubs. Payment will be made under Item 1 – Clearing and Grubbing. If Item 1 does not appear as a contract item, then payment will be distributed among the various items of the contract.

O.S.H.A. NOTES: The safety provisions in the Specifications are primarily to protect Village property and the public against unsafe acts of the Contractor. The Occupational Safety and Health Act of 1970 requires that: *“Each Employer (1) shall furnish to each of their employees employment and a place of employment which are free from recognized hazards that are likely to cause death or serious physical harm to their employees; (2) shall comply with the occupational safety and health standards promulgated under this Act.”* The regulations in the Act may be more stringent than are required by the Plans and/or Specifications. The Contractor, however, must conform to the O.S.H.A. Regulations and such conformance shall not be reason to demand additional payment of claim extra work.

SALES TAX: The New York State Tax Law has been amended to exempt from sales and use taxes, imposed under Article Twenty-eight and pursuant to Article Twenty-Nine thereof, the sale or use of tangible personal property incorporated in structures, buildings or real property owned by the exempt organizations.

The Village is an exempt organization and tangible personal property to become an integral component part of this project is not subject to Sales Tax in accordance with Paragraph Fifteen of Subdivision (a) of Section Eleven Hundred Fifteen of the Tax Law, amended February 20, 1974.

PUBLIC LIABILITY POLICY & BONDS: The Contractor shall furnish evidence of insurance pursuant to that as specified in the contract attached hereto for the benefit of the Contractor and the Incorporated Village, each of which shall be named as insured.

Performance and Payment Bonds in the amount of the contract shall be furnished by the successful bidder in favor of the Incorporated Village.

A Maintenance Bond shall be required in favor of the Village for the period of two years after acceptance and completion of the work.

Notice of accident or claim under the liability policy shall be given within ninety (90) days to the Village Administrator of the Incorporated Village, of such accident. Notice of claim shall be given to the insurance company within sixty (60) days after such claim shall be filed with the Village Administrator of the Incorporated Village.

The policy shall not be invalidated by reason of any violation of any of the terms of any policy issued by the insurance company of the Contractor.

All policies and bonds must follow the format provided in the instruction to bidders attached. All insurance policies shall contain provisions with respect to cancellation or non-renewal as set forth in the contract document.

STRIKES AND OTHER DELAYS: The contractor will employ labor that will not delay or interfere with labor harmony at the sites and/or introduce material that will interfere with the execution of the work of the Project and will employ only such labor as will not delay or interfere with the speedy and lawful progress of the project.

The Contractor shall not be responsible for Force Majeure but shall be responsible for continuity of construction procedures caused by strikes pertaining to the work of the Contractor, subcontractors or material suppliers. Delays which affect the schedule of the project attributable to special requirements or actions by municipalities, federal agencies and other public bodies not anticipated in the contract documents, industry-wide shortages of materials as differentiated from delays by a specific or small group of suppliers, industry-wide strikes as opposed to those affecting a single or small group of contractors or suppliers and unusually severe storms of extended duration shall be considered as reasonable conditions for interrupted performance of the Contractor in the procedures of the contract and shall be on those occasions compensated solely by the granting of an extension of time by the Village to complete the work of sustaining its continuity.

INSPECTION OF SITE AND CONSIDERATION OF OTHER SOURCES OF

INFORMATION: Pre-bidding inspection of the site of the proposed work and investigation of other usual sources of information shall be performed by the Bidder. It will be presumed that the Bidder shall have full knowledge of all conditions about the site(s) relating to or affecting in any way, the performance of the work to be done under this contract.

GENERAL SPECIFICATIONS AND CONDITIONS OF THE CONTRACT

DEFINITIONS:

I. Wherever the words defined in this article, or pronouns in place of them occur in this contract or in the specifications forming a part of it, they shall have the meaning stated below:

The word "**Board**" shall mean the Board of Trustees, or any person or officer duly authorized by it to act for the Board of Trustees in the execution of the work covered by this contract.

The word "**Engineer**" shall mean the person duly appointed by, and acting in the capacity of the Engineer of the said Village for this work, or the representative upon the ground, acting with the scope of the duties entrusted to him/her.

Wherever the words "**as directed**", "**as appointed**", "**as required**", or words of like import are used, it shall be understood that the direction, requirements or permission of the Engineer is intended; and similarly the words "**approved**", "**acceptable**", "**satisfactory**", or words of like import shall mean approved by, acceptable, or satisfactory to the Engineer.

CONTRACT INCLUDES:

II. The Contractor shall furnish all labor and material necessary for the 2026 Miscellaneous Asphalt Improvements, including the cleaning up of the areas effected by the work, construct, complete and finish same in a thorough, workmanlike manner in every respect to the satisfaction and approval of the Village, in the manner and within the time hereinafter limited, and in strict accordance with the proposal, specifications and plan (s) herein referred to, which proposal, specifications and plan (s) are hereby made a part of this contract, as fully as if the same were repeated at length herein.

SPECIFICATIONS AND PLAN SUPPLEMENTARY

III. The said specifications and plan (s) are intended to supplement each other, and together constitute one complete set of specifications and plans, so that any work exhibited in the one and not in the other shall be executed just as if it has been set forth in both, in order that the work shall be completed in every respect according to the complete design or designs as decided and determined by the Engineer. Should anything be omitted from the specifications and plans, which is necessary to a clear understanding of the work, the Contractor shall promptly notify the Engineer.

ENGINEER'S DECISION

IV. All work under this contract shall be done to the satisfaction of the Engineer, who shall determine the amount, quality, acceptability and fitness of the several items of work and materials, which are to be paid for hereunder. In case of any ambiguities in the plans, specifications or maps, or, between any of them, the matter must be immediately submitted to the Engineer, who shall adjust same and the decision in relation thereto shall be final and conclusive upon the parties.

SUPERVISION AND INSPECTION

V. It is agreed that the Board, at its pleasure, may appoint and employ, at its own expense, such persons as may be necessary, who are to act as Engineers, Inspectors or Agents, for the purpose of supervising the materials furnished and the work done as the work progresses. Such persons shall have unrestricted access to all parts of the work and to other places at and in which the preparation of the materials and other parts of the work to be done under this contract, are carried on and conducted. The Contractor shall give said appointee all facilities and assistance required to carry out their work of supervision and inspection.

Such inspection shall not relieve the Contractor from any obligation to perform said work strictly in accordance with the plans and specifications, and work not so constructed shall be replaced free of all expense to the Village whenever so ordered by the Board without reference to any previous oversight or error in inspection.

OBLIGATION OF CONTRACTOR

VI. It shall be at the Contractor's expense and cost to provide any and all manner of labor, materials, appliances, utensils, tools, machinery, power, sheeting, transportation and cartage and whatever else may be required of every description necessary to do and complete the work and shall be solely answerable for the same and for the safe, proper and lawful construction, maintenance and use thereof.

DEFENSE OF SUITS

VII. In case any action at law or suit in equity may or shall be brought against the Village or any of its representatives or agents for or on account of the failure, omission or neglect of the Contractor or the sub-contractor(s) or their employees or agents to do and perform any of the covenants, acts, matters or things by this contract undertaken or to be done or performed by the Contractor, the sub-contractor(s), or employees or agents, for any injury or damage caused by the negligence of the Contractor or its employees or agents, the Contractor shall indemnify and save harmless the Village and its representative, agents and servants of and from any and all loss, cost, damage, expense, judgment or decrees whatsoever arising out of such actions or suits as may or shall be brought as aforesaid and at their own cost and expense to defend any such claim.

PERMITS, LAWS AND ORDINANCES

VIII. The Contractor shall keep fully informed of all existing and current ordinances and regulations and Town, County, State or National Laws in any way limiting or controlling the actions or operations of those engaged upon the work affecting the materials supplied to or by them. The Contractor, shall at all times observe and comply with all such valid and legally binding ordinances, laws, and regulations and shall protect and indemnify the Village, its representatives and agents, against any claim or liability arising from or based on any violation of the same, and shall take out and carry appropriate employer's liability insurance and public liability insurance. The Contractor shall obtain and pay for all necessary permits and pay all fees required.

ASSIGNMENT OF CONTRACT

IX. The Contractor shall have no right or power to assign this contract, in whole or in part, nor to assign any right arising, or monies due or to grow due thereunder, without formal approval of the Village.

SUBLETTING

X. No part of the work embraced in this contract shall be sublet or in any way removed from the control of the Contractor under the direction and supervision of the Engineer as aforesaid, except with the written consent of the Village. The Contractor's organization shall perform work amounting to not less than fifty (50) percent of the original price. The contract amount upon which the fifty percent (50%) requirement is computed includes the cost of materials and manufactured products which are to be purchased or produced by the contractor under the contract provisions.

CLAIMS FOR LABOR AND MATERIALS

XI. The Contractor shall indemnify and save harmless the Village from all claims for labor done and for materials furnished under this contract, or any alterations or modifications thereof, and shall furnish the Board with satisfactory evidence when called for, that all persons who have done work, or furnished materials under this contract, for which the Village may become liable under the laws of the State of New York, have been fully paid for satisfactorily secured.

MODIFICATIONS

XII. The Contractor, in entering into this contract, understands that the Board reserves the right to modify to the extent herein provided, the arrangement, character, grade or size of the work or appurtenances whenever in its opinion it shall deem it necessary or advisable to do so. The Contractor shall and will accept such modifications when ordered in writing by the Board through the Engineer and the same shall not vitiate or void this contract. Any such modifications so made shall not, however, subject the Contractor to increase expense without equitable compensation, which shall be determined by the Engineer. If such modifications result in a decrease in the cost of work involved, an equitable deduction from the contract price, to be determined by the Engineer, shall be made. The Engineer's determination of any such additional compensation or any such deduction shall be based upon the bid submitted and accepted, when applicable.

EXTRA WORK

XIII. The Contractor shall and will do any work and furnish any materials not herein provided which, in the opinion of the Engineer, may be found necessary or advisable for the purposes of modernization, modification or alterations. All extra work and materials shall be ordered in writing by the Engineer and authorized by the Board and in no case will any work or materials in excess of the amount (s) shown or arranged be paid for. The Contractor further agrees that to accept, if ordered, as full compensation the price (s) as determined by the cost of all necessary labor, material, equipment and other incidental services on a force account basis in accordance with the 2009 Nassau County Standard Specifications for the Construction of Highway and Bridges.

The Contractor shall give the Engineer access to all accounts, bills, payrolls and vouchers relating to extra work and agrees to file a statement in writing of the actual cost of the claim fully itemized before the 15th day of the month following that during which each specific order was complied with.

In lieu of the last method of extra work compensation, the Engineer may execute said payment at a price agreed upon between the Engineer and the Contractor, and authorized by the Board. The Contractor further agrees to furnish the Engineer with a statement in writing detailing the extra work so ordered and stipulating the agreed price, which shall include all the labor and materials necessary for the proper completion of the work. Same shall be valid only when acknowledged and agreed to by the Engineer in writing and authorized by the Board.

PAYMENT

XIV. The Village, in consideration of the faithful performance by the Contractor, their covenants, promises and agreements herein contained, agrees to pay the Contractor for the full compensation by and within the time herein specified and limited and to the satisfaction and approval of the Engineer. The price stipulated in the said proposal hereto attached, such payment to be made at the time and the manner and upon the conditions herein expressly provided. The Village also agrees to pay in addition such amount as may be agreed upon for modifications in accordance with Article XII and for extra work in accordance with Article XIII hereof.

PAYMENTS TO CONTRACTORS

XV. Unless otherwise provided herein the Contractor shall submit to the Engineer no later than the first week of the month and in accordance with the terms of the contract, a requisition, invoice and payment affidavit for a progress payment for the work performed the preceding calendar month and/or material (s) furnished to the date of the requisition less retainage and any amount previously paid to the Contractor. The Engineer shall review and approve for payment the requisition and attach a certified Engineer's estimate of the work performed to the date of the requisition less retainage and any amount previously paid to the Contractor for submittal to the Village. To insure the proper performance of this contract, the Village shall retain five percent (5%) of the value of the work completed plus an amount necessary to satisfy any claims, liens, or judgments against the Contractor, which have not been discharged until final completion and acceptance of all work covered by this contract.

When approved by the Engineer, and upon audit and approval for payment according to the Village's customary procedures, the Village will thereafter promptly pay the required amount. When any monies provided for the purpose of this project are funded by any other jurisdiction municipal agencies (i.e. Federal, State or County) to the Village, payment will be made to the Contractor subsequent to and as soon as practical thereafter upon approval and receipt of the subject requisitioned monies for the purpose from the jurisdictional agency.

As soon as practicable after the completion and acceptance of the work, the Engineer will prepare the final certificate for the work performed and the materials furnished for the total contract price and the Village will pay the Contractor such price as so certified, after deducting the amount of the payments previously made. Upon audit and approval for payment according to the Village's customary procedures, payments will be made when funds are available as previously stated herein.

In the event the payment provisions hereof are contrary to, or in conflict with, the provisions of the General Municipal Law, the statutory provisions shall prevail.

TIME TO START AND COMPLETION

XVI. The Contractor agrees to begin work within ten (10) days after directed to do so, by written notice from the Engineer. The Contractor agrees to prosecute the same continuously in a thorough and workmanlike manner so that it shall be entirely completed within the number of calendar days stipulated in the proposal from the date of said notice. The Engineer shall be the sole judge as to whether the work hereunder has been completed within the time stipulated. The Contractor agrees to notify the Engineer, not less than five (5) days in advance of actual operations.

LIABILITY OF CONTRACTOR FOR EMPLOYEES

XVII. Each and every employee of the Contractor, and each and every employee of the sub-contractors engaged in the said work, shall for all purposes, be deemed and taken to be the exclusive servants of the Contractor and not for any purpose or in any manner in the employment of the Village. The Contractor shall in no manner be relieved from the responsibility or liability on account of any fault or delay in the execution of the said work, or any part thereof, by any such employee, or any such employer, or any such sub-contractor, or any material supplier whatsoever.

NO WAIVER OF RIGHTS

XVIII. No certificate given or payment made under this contract, except for final certificate or final payment, shall be evidence of the performance of the contract either wholly or in part, and no payment shall be construed to be an acceptance of defective work or improper materials. No act of the Board or of the Engineer or of any representative of either of them in superintending or directing the work, nor any extension of time for the completion of the work, shall be regarded or taken as an acceptance of such work, or any part thereof, or of materials used therein or therefore, either wholly or in part, but such acceptance shall be evidenced only by the final certificate of the Engineer.

VERBAL STATEMENTS NOT BINDING

XIX. It is understood and agreed that the written terms and provisions of this agreement shall supersede all prior verbal statements of the Engineer or other representatives of the Village and such statements shall not be effective or be construed as entering into or forming a part of, or altering in anyway whatsoever the written agreement.

RELEASE OF LIABILITY

XX. No persons or corporations other than the signer of the contract as Contractor, now has any interest hereunder, and no claim shall be made or be valid, and neither the Village nor any employee or agent thereof, shall be liable or be held to pay any money, except as hereinbefore provided. The acceptance by the Contractor of the last payment shall operate as and shall be a release to the Village and every representative and agent thereof, from all claims and liability to the Contractor for anything done or furnished for, or relating to the work or for any act or neglect of the Village or of any person relating to or effecting the work.

INSURANCE REQUIRED

XXI. A. The Contractor shall procure and shall maintain all of the insurance required set forth until final acceptance of all the work.

B. The Contractor shall not commence work under this contract until all required insurance has been obtained, including required insurance for each subcontractor. The Contractor will be required to supply certificates of insurance to the Village before commencing work.

C. The Contractor shall furnish to the Village a certificate in duplicate of the insurance required under the foregoing provisions. Such certificates shall be in a form satisfactory to the Village, shall list the various coverage and shall contain, in addition to any provisions hereinbefore required, a provision that the policy shall not be changed or cancelled and that it shall be automatically renewed upon expiration and continued in force until final acceptance unless the Village is given thirty (30) days notice by Certified Mail-Return Receipt. Upon request, the Contractor shall furnish the Village with a certified copy of each policy.

D. All insurance required to be procured and maintained as aforesaid must be procured from insurance companies authorized to do business in the State of New York.

STATUTORY PROVISIONS

XXII. Attention is directed to the provisions of the Labor Law of the State of New York applicable to the employment of labor at the site of the project all of which shall be conformed to by the Contractor.

CONTRACT DOCUMENTS

XXIII. The Contract includes all of the Contract Documents which comprise:

1. Public Notice to Bidders
2. Instructions to Bidders
3. Iran Divestment Act
4. Equal Employment Opportunity
5. General Specifications and Conditions
6. General Conditions
7. General Construction Notes
6. Special Conditions, if any
7. Bid Bond
8. Performance Bond
9. Maintenance Bond
10. Detail Specifications
11. Contract
12. Form of Bid and Bid Sheet(s)
13. Prevailing Wage Rates
14. Plans, if any
15. Addenda, if any

PRICES TO INCLUDE

XXIV. The Contractor will accept the contract price as full compensation for furnishing all the work, materials, labor, equipment and services; and building, constructing and completing, as provided in the specifications and shown on the plan. The Contractor will also accept the contract price as full compensation for the whole of the work aforesaid and also all loss or damage arising out of the nature of the work aforesaid or from action of the elements or from any unforeseen obstructions or difficulties that may be encountered in the prosecution of the same and all expenses incurred by or in consequence of the suspension or discontinuance of the work.

SCOPE OF PAYMENTS

XXV. The quantities listed in the bid schedule do not govern final payment. Payments to the Contractor will be made only for actual quantities of contract items performed in accordance with the plans and specifications and if, upon completion of the construction, these actual quantities show either an increase or decrease from the quantities given in the bid schedule, the contract unit prices will still prevail.

The Contractor shall accept the compensation, as herein provided, in full payment for furnishing all materials, labor, equipment, tools and incidentals necessary and for performing all work contemplated and embraced under the contract.

In cases where the specifications relating to any pay item requires that the contract price cover and be considered compensation for certain work or materials essential to the item, this same work or materials shall not be measured or paid for under any other item that may appear elsewhere in the specifications.

FINAL CLEANING UP

XXVI. Before final acceptance, the work and all ground occupied by the Contractor in connection with the work, shall be cleaned of all rubbish, excess materials, temporary structures and equipment and all parts of the work shall be left in a neat and presentable condition.

LINE & GRADE CONTROL

XXVII. It shall be the Contractor's charge to insure proper flow of storm water in the gutters and other facilities. The Contractor shall also ensure that no birdbaths are created in newly constructed pavement. The Contractor shall survey and stakeout the area, as hereinbefore described in the General Conditions, and be responsible for the accuracy of the work. Working drawings, cut sheets, detail sheets and any sketches made in connection with the work of the contract, shall be submitted to the Engineer for information and subject to verification or correction, if they shall so decide.

CONTRACTOR'S RESPONSIBILITY FOR WORK

XXIII. Until notified by the Engineer of the satisfactory completion of the work, the Contractor shall have the charge and care thereof and shall take every precaution against injury or damage to any part thereof by the action of the elements, or from any other cause, whether arising from the execution or from the non-execution of the work. Repair and

restoration of all damages to any portion of the contract work shall be done at the Contractor's expense.

In case of suspension of work for any cause whatever, the Contractor shall be responsible for all materials and shall properly store them, if necessary, and if required by the Engineer, off the property of the Village. Temporary paving and structures shall be provided at the Contractor's expense.

CONTRACTOR'S NEGLECT

XIX. If the Contractor should neglect to perform any provision of the contract, the Village may serve a five (5) day written notice upon the Contractor to remedy said failure to perform this contract in said respect. Should the Contractor neglect to comply with said notice within five (5) days, the Village shall be entitled to remedy such deficiency and deduct the cost thereof, from the payment then due or thereafter to become due to the Contractor. In case such cost shall exceed the unpaid balance of the contract price, the Contractor agrees to pay such excess amount to the Village immediately upon written demand therefore.

DEFAULT OF THE CONTRACTOR

XXX. If (a) the Contractor should be adjudged bankrupt or file a petition in bankruptcy or make an assignment for the benefit of creditors; or (b) a receiver shall be appointed for the Contractor; or (c) the Contractor shall neglect or refuse to prosecute the work hereunder promptly and with diligence, then the Village, upon the written certificate of the Engineer that sufficient cause exists to justify such action, may upon five (5) days written notice to the Contractor, terminate the employment of the Contractor and take possession of the premises and of all tools, materials, appliances and equipment thereon and proceed to complete, or cause the work to be completed. The Village may deduct the cost of completing said work from payments then or thereafter due to the Contractor, who shall pay the Village any amount by which such cost of completion shall exceed the unpaid moneys due or to become due to the Contractor. The certificate of the Engineer as to such cost of completion shall be binding upon the Village and the Contractor.

NO ESTIMATE ON CONTRACTOR'S NON-COMPLIANCE

XXXI. It is further agreed that so long as any lawful or proper direction concerning the work or material given by the Village or Engineer or a representative, shall remain uncomplished with, the Contractor shall not be entitled to have any estimate made for the purpose of payment nor shall any estimate be rendered on account of work done or materials furnished until such lawful or proper direction aforesaid has been fully and satisfactorily complied with.

PROSECUTION OF WORK

XXXII. Following receipt of notification of award, the Contractor will receive a notice to proceed with the performance of the construction required by the contract.

If requested by the Engineer, the Contractor shall, within five (5) days, file with the Engineer a time chart or schedule of proposed progress, a plan of construction and the proposed detailed methods of carrying on the work. The Contractor shall start construction operations on that part of the project designated by the Engineer and the work shall be conducted in such manner and with sufficient materials, equipment and labor as are considered necessary to insure its completion in accordance with the Plans and Specifications,

as interpreted by the Engineer, within the time set forth in the contract. Should the prosecution of the work for any reason be discontinued, the Contractor shall notify the Engineer at least twenty-four (24) hours in advance of resuming operations.

The Contractor shall not open up work to the prejudice of work already started and the Engineer may require the Contractor to finish a section on which work is in progress before work is started on any additional section.

SUSPENSION OF WORK

XXXIII. The Engineer may, by written order suspend the performance of the work, either in whole or in part for such periods as may deemed necessary due to unsuitable weather, conditions considered unfavorable for the suitable prosecution of the work, or failure on the part of the Contractor to correct conditions unsafe for the workers or the general public, to carry out orders given by the Engineer, or to perform any provisions of the contract. Suspension of the work on some, but not all items, as ordered in writing by the Engineer, shall be considered "partial suspension". The number of elapsed calendar days during partial suspension to be charged against contract time shall be computed and determined by the Engineer. Suspension of work on all items as ordered in writing by the Engineer shall be considered "total suspension." No charge shall be made against contract time for calendar days elapsing during such total suspension. Work of any emergency nature ordered by the Engineer for the convenience of public traffic and minor operations not effected by or connected with the cause of suspension, if permitted by the Engineer, may be performed during the period of total suspension. Any work progressed by the Contractor when so stopped by the Engineer, may be ordered removed and replaced at the Contractor's expense.

SAFETY AND REPORT OF ACCIDENTS

XXXIV. The Contractor shall take necessary care at all times in all the operations of their equipment to protect the public. The safety provisions of all applicable laws including Federal O.S.H.A. regulations, Building and Construction codes, shall be observed. Machinery and equipment and other hazards shall be guarded in accordance with the safety provisions of the Manual of Accident Prevention in Construction, published by the Associated General Contractors of America, to the extent that such provisions are not inconsistent with applicable laws or regulations. The Contractor shall maintain an accurate record of all accidents arising out of and in the course of employment on work under this contract resulting in injury or death. The Contractor shall report in writing the particulars of such accidents immediately to the Village.

DELAYS

XXXV. If for any reason beyond the control of the Contractor, the work is delayed, the Contractor shall have no right to, nor shall make any claim for damages or additional compensation for delay, but shall be granted an extension of time to be computed and determined by the Engineer and approved by the Village. The Contractor shall have no right to, nor make any claim for damages or additional compensation on account of suspension of the work in whole or in part, but shall be granted an extension of time to be computed and determined by the Engineer and approved by the Village.

CHANGE OR TERMINATION

XXXVI. This agreement cannot be changed or terminated or discharged orally except by written agreement signed by the Contractor and the Village.

ABANDONMENT OF WORK

XXXVII. It is mutually agreed that if the work to be done under this contract shall be abandoned, or if this contract or any part thereof shall be sublet without the consent of the Village being first obtained in writing, or, if this contract or any claim thereunder shall be assigned by the Contractor otherwise than as herein specified, or, if at any time, the Engineer shall be of the opinion that the conditions herein specified as to the rate of progress are not fulfilled, or that the work of any part thereof is unnecessary or unreasonably delayed, or that the Contractor is violating any of the provisions of this contract, the Engineer, with the approval of the Village, without prejudice to any other rights or remedy of the Village shall notify the Contractor by a written notice to discontinue the work, or such part thereof, and cease to have any right to possession of the ground and the Village shall thereupon have the right by contract, or otherwise as may be determined, to complete the work or such part thereof and to charge the expense thereof to the Contractor and take possession of an use therein such materials, plant and machinery, implements and tools of every description as may be found upon said work. The expense so charged shall be deducted and paid by the Village out of the moneys due or to become due the Contractor under this contract or any part thereof. In case such expense is more than the sum which would have been payable under this contract; if the contract has been completed by the Contractor, the Contractor and its sureties shall pay the amount of such expense to the Village.

PRESERVATION OF PROPERTY

XXXVIII. Where construction may necessitate entry on privately owned property, the Contractor shall obtain all necessary permission or temporary easements as may be required to complete the work, where these easements have not been obtained by the Village.

DEBARRING PLEA OF MISUNDERSTANDING

XXXIX. The Contractor is precluded from pleading misunderstanding or deception because of estimates or quantities, the character of the work, the location of the site or other conditions surrounding the intent of the program. The Contractor shall be thoroughly familiar with the site, both above and below the ground of the proposed involvement, prior to making the proposal and perform all tests required before and during construction.

HOLD HARMLESS

XL. The Contractor shall indemnify and hold harmless the Village from and against all suits, claims, demands or actions for any injury and/or property damage sustained or alleged to be sustained by any party or parties in connection with the construction or the work in any part thereof, or in commission or omission of the Contractor, their employees or agents of any sub-contractor and in case any such action shall be brought against the Village, the Contractor shall immediately take charge of and defend same at their own cost and expense.

MACHINERY AND PLANT

XLI. The Contractor shall furnish all transportation, apparatus, ways, works, machinery and plant, and also suitable appliances requisite for the execution of this contract and shall be

solely answerable for the same, and for the safe, proper and lawful construction, maintenance and use thereof. All of the above shall be at the Contractor's expense. The Contractor shall cover and protect the work from damage, and all injury to same before completion of this contract and its acceptance by the Village.

The Contractor shall be solely answerable for all damages to the Village, to the neighboring premises, or to any private or personal property due to improper, illegal or negligent, conduct of the Contractor or the sub-contractor, employees or agents in or about the said work, or in the execution of the work covered by this contract or any extra work undertaken, as hereinafter provided, or to any defect in or improper use of scaffolding, apparatus, ways, works, machinery and plant; and shall assume the defense and save harmless the Village, its' officers or agents from all claims whatsoever relating to labor or materials furnished for the work, or to inventions, patents or patent rights used in the work or in doing the work.

PATENTED DEVICE, MATERIAL AND PROCESSES

XLII. It is mutually understood and agreed that the contract price is to include all royalties and costs arising from patents, trademarks, and copyrights in any way involved in the work. Whenever the Contractor is required or desires to use any design, device, material or process covered by letters patent or copyright, the Contractor shall indemnify and save harmless the Village from any and all claims for infringement by reason of the use of any such patented design, device, material or process to be performed under the contract, and shall indemnify the Village for any costs, expenses and damages which it may be obliged to pay by reason of any such infringement at any time during the prosecution or after the completion of the work.

EXTENSION OF TIME

XLIII. This section intentionally left blank.

LIQUIDATED DAMAGES

XLIV. Please refer to liquidated damage clause sheet #5 of the fixed contract.

ARREARS

XLV. The Contractor warrants that they are not in arrears to the Village upon debt or contract, and that they are not a defaulter, as surety, contractor or otherwise.

WORKER'S COMPENSATION LAW

XLVI. Pursuant to the provisions of Chapter Four Hundred and Seventy-eight of the Laws of Nineteen Hundred Sixteen or amendments thereto, this contract shall be void and of no effect unless the Contractor shall secure compensation for the benefit of, and keep insured during the life of this contract, such employees as are required to be insured by the provisions of Chapter Forty-one of the Laws of Nineteen Hundred Fourteen and acts amendatory thereto, known as the "Worker's Compensation Law".

SUB-CONTRACTOR'S WORKER'S COMPENSATION

XLVII. In addition to the provisions of Article X of this agreement and Article XXI of this agreement, the Contractor, at the time of receiving approval from the Village of the name of a subcontractor, shall, before permitting such sub-contractor to commence any work contemplated by this contract, furnish two certificates of worker's compensation coverage of the employees of the said subcontractor. Unless such certificates shall be furnished to the Engineer, the approval of such sub-contractor shall be deemed revoked.

PREVENTION OF DELAY

XLVIII. The Contractor and the sub-contractors shall not employ on the work, any labor, materials or means whose employment, or utilization during the course of this contract, may tend to or in any way cause or result in strikes, work stoppages, delays, suspension of work or similar troubles by workers employed by the Contractor or the sub-contractors, or by any of the trades working in or about the buildings and premises where work is being performed under this contract, or any other contract, or by other contractors or their sub-contractors pursuant to other contracts, or on any other building or premises owned or operated by the Village. Any violation by the Contractor of this requirement, may, upon certification of the Engineer, be considered as proper and sufficient cause for canceling and terminating this contract.

PAYMENT AFFIDAVIT

XLIX. Accompanying partial and final requests for payment by the Contractor, there shall be an affidavit stating the period of work covered and a statement that prevailing recognized rates and contract obligations for all labor supplied or performed and materials furnished, in connection with said work, have been paid with a listing, if any, of exceptions.

WARRANTY OF TITLE

L. The Contractor agrees upon completion of all work that the premises of the Village shall be free from all claims, liens or charges for any work covered by the contract and further agrees that neither the Contractor nor any person, firm or corporation furnishing any material or labor for any work covered by the contract shall have any right to lien upon the premises. Nothing contained in this warranty, however, shall defeat or impair the right of such persons furnishing the materials or labor under any law permitting such persons to look to funds due the Contractor in the hands of the Village. The provisions of this warranty shall be inserted in all sub-contracts and material contracts and notice of its provisions shall be given to all persons furnishing materials for the work when no formal contract is entered into for such material.

INTEREST OF PERSONS

LI. No member, officer or employee of the Village or former member, officer or employee of the Village who ceased to be a member, officer or employee with one (1) year, shall voluntarily acquire any interest, direct or indirect, in any property included or planned to be included in this contract or any sub-contract relating to the contract. If any such person involuntarily acquires any such interest or had acquired any such interest prior to appointment of employment as such member, officer, or employee, then such person shall immediately disclose any such interest in writing to the Village. Upon any such disclosure, a member, officer, or employee shall not participate in any action by the Village relating to the property or contract in which they may have any such interest.

NEW YORK STATE LAW

LII. Provisions of this contract are to be construed to be in accordance with the laws of the State of New York, as a contract made in the State, and that any dispute or claim arising out of or under the contract must be resolved in a court of competent jurisdiction in the County of Nassau, State of New York.

NO WAIVER OF LEGAL RIGHTS

LIII. The Board shall not be precluded or estopped by any measurement, estimate or certificate made either before or after the completion and acceptance of the work and payment therefore, from showing the true amount and character of the work performed and materials furnished by the Contractor, nor from showing that any such measurement, estimate or certificate is untrue or is incorrectly made, nor that the work or certificate is untrue or is incorrectly made, nor that the work or materials do not in fact conform to the contract. The Board shall not be precluded or estopped, notwithstanding any such measurement, estimate of certificate and payment in accordance therewith, from recovering from the Contractor's failure to comply with the terms of the contract, including but not limited to, attorney's fees incurred by the Village as a result of such failure. Neither the acceptance by the Engineer or by the representative, nor any payment for or acceptance of the whole or any part of the work, nor any extension of time, nor any possession taken by the Engineer shall operate as a waiver of any portion of the contract or of any power herein reserved, or of any right to damages. A waiver of any breach of the contract shall not be held to be a waiver of any other or subsequent breach.

GENERAL CONSTRUCTION NOTES

The Contractor shall employ a Subcontractor approved by the Nassau County Department of Public Works Division of Traffic Engineering (telephone # (516) 572-0465 to perform all required traffic signal work. All work shall be approved by the aforementioned Agency.

Construction shall be restricted to one side of any roadway or intersection until that side is completed and open to all vehicular and pedestrian traffic. The Contractor shall sequence construction operations in a manner so that two adjacent parallel roadways are not simultaneously closed to traffic.

The Contractor shall not remove any sidewalk within any one block until completion of new curb construction for that block. The Engineer will then establish sidewalk removal limits.

All new drive aprons shall be concrete.

The Contractor shall protect all trees on the Project from damage caused by construction operations. All trees damaged by the Contractor's operations shall be repaired or replaced by the Contractor at the Contractor's expense. All tree repair and replacement work shall be provided by the Contractor in strict conformance with current horticultural standards and practices.

The cost of tree pruning, root cutting, root removal and tree debris removal shall be included in the price bid for various Contract items.

All fallen leaves and debris within the Contract Area shall be removed by the Contractor and disposed outside the Contract limits at the Contractor's expense.

Belgian block, stone block or wood curbing; slate, brick stone or concrete block walks that are to be replaced by work under this Contract shall be carefully removed and salvaged by the Contractor. The Contractor shall leave said materials for the homeowner. In the event that the homeowner does not want the material, the contractor shall remove and dispose of same.

Underground lawn sprinkler systems may exist within the Contract area. The Contractor shall provide all necessary adjustments at no additional cost.

The Contractor shall be responsible for maintaining all signs within the Contract area for the duration of the Project. Regulatory signs must be in place at all times. All street and traffic control signs located within the sidewalk areas shall be set in a 4" PVC sleeve. The cost shall be included in the price bid for various Contract items.

The Contractor shall institute sediment and erosion control measures to prevent sediment, cement or any other materials or construction debris from entering the drainage system or any waterways during all phases of construction. The sediment and erosion control devices and procedures to be employed by the Contractor shall meet current established standards. The Contractor shall maintain positive surface drainage flow at all

times during construction. All costs associated with this work shall be included in the price bid for various Contract items.

All existing thru-curb appurtenances (e.g. roof drains) shall be maintained and restored by the Contractor. The cost shall be included in the price bid for all curb and curb with gutter payment items.

Underground street lighting may exist immediately adjacent to the existing curb at various locations throughout the Project area. The Contractor shall verify the locations. The Contractor shall include the cost of protecting, removing, modifying, relocating, repairing and replacing all street lighting as required in order to provide new curbing, driveway aprons and sidewalk. The cost shall be included in the price bid for various Contract items.

The Contractor shall limit the hours of construction operations within the Project area to regular working hours (8 hrs.) between 8:00 a.m. to 4:00 p.m. See General Conditions for further restrictions and instructions.

The Contractor shall protect all existing drainage and sanitary structures and pipes when adjusting inlets, frames and covers. No separate payment will be made. The Contractor shall repair any damage to the satisfaction of the owner at the Contractor's expense.

The Contractor shall erect, maintain and remove construction warning devices at all approach routes to the construction as ordered by the Engineer and in accordance with the New York State Manual of Uniform Traffic Control Devices as currently revised. The cost shall be included in the price bid for Item 102.

The Contractor shall strictly adhere to the current provisions set forth and contained within A.C.I. recommendations and guidelines for "Hot weather concreting" (A.C.I. 305R) and "Cold weather concreting" (A.C.I. 306R).

DETAIL

SPECIFICATIONS

**USE NASSAU COUNTY 2009 STANDARD SPECIFICATIONS AND STANDARD
DETAILS FOR THE CIVIL ENGINEERING AND CONSTRUCTION VOLUME 1-3**

AND

THE HEREINAFTER ADDENDA

ITEM 2X – UNCLASSIFIED EXCAVATION

The specification for Item 2 shall apply with the following additions:

Under this item, suitable excavated material shall be placed and compacted in fill areas to bring surface to grade as directed by the Engineer.

All unsuitable or excess excavated material shall become the property of the Contractor and be disposed of outside the limits of the Village.

No additional payment will be made for any transporting, filling, compaction, stockpiling or disposal work and the cost of same shall be included in the price bid for this item.

For computation of the quantities to be paid for under this item a planimeter shall be considered an instrument of precision and the quantities computed from areas obtained by its use shall be accepted as accurate by all parties concerned.

ITEM 7 – PREPARING FINE GRADE

1. **Description.** Under this item the Contractor shall prepare the fine grade to receive pavement follow existing and or new lines and grades shown on the Plans. This item will be paid for in the construction of all pavements with high type wearing surfaces on which it is desirable to obtain the smoothest possible riding surface.

2. **Construction Details.** Before any paving material is placed upon the subgrade, it shall be shaped to line and grade and compacted with an approved self-propelled roller weighing not less than 10 tons. When existing pavement is to be widened less than the full width of one lane, an approved self-propelled roller providing a compression of not less than 325 pounds per linear inch of tread may be used. All hollows and depressions, which develop while rolling shall be filled with acceptable granular material conforming to M3, Type a, b or c and again rolled. This process of shaping, rolling and filling shall be repeated until no depressions develop. After compaction, the top surface of the fine grade shall be true to line and grade at all locations. If the fine grade becomes rutted or displaced due to any cause whatsoever the Contractor shall re-grade it.

Any portion of the subgrade, which is not accessible to a roller, shall be compacted with mechanical tampers. The subgrade shall not be muddy or otherwise unsatisfactory when the pavement is placed upon it and any such defects shall be corrected before paving operations are started. No separate payment will be made for this work and the cost thereof shall be included in the prices bid for the appropriate items.

Any scarified old macadam used for the subgrade shall be forked or raked over, after which the surface shall be compacted by rolling with a self-propelled roller weighing not less than 10 tons until an even and firm surface is produced, after which suitable earth, fine gravel or screenings shall be used to fill all voids and again rolled. If necessary in order to satisfactorily compact the stone, the surface shall be sprinkled during the process of rolling and filling.

3. **Method of Measurement.** The quantity to be paid for under this item will be the number of square yards of the course of pavement placed directly on the subbase course in accordance with the Plans and Specifications or on the subsoil if a subbase course is not used. This shall include widening areas beyond the limits of existing pavement and areas where existing pavement is removed and replaced with new pavement.

4. **Basis of Payment.** The price bid per square yard shall include the cost of furnishing all labor, materials, equipment and incidental work, including scarifying where necessary, to form, trim and compact the fine grade to the lines and grades shown on the Plans or ordered by the Engineer. No separate payment will be made for furnishing and applying water necessary for compaction and the cost thereof shall be included in the price bid for this item.

This item shall not include the cost of accurately meeting the line and grade specified for gravel surface course pavements, subbase courses, resurfaced existing pavements, private driveways, sidewalks and shoulders both paved and unpaved, unless otherwise specifically indicated, as the cost thereof is included under the various items of work.

ITEM 16SS-1-CHANGE ELEVATION OF SANITARY SEWER MANHOLES

(MINOR ADJUSTMENT)

ITEM 16SS-3-CHANGE ELEVATION OF DRAINAGE MANHOLES AND DROP INLETS (MINOR ADJUSTMENT)

DESCRIPTION

Under this item the Contractor shall remove and reset to required existing Village, or County owned manholes and drop inlets within the limits of the Contract, as shown on the plans, specified herein and ordered by the Engineer.

The Contractor shall notify the Rockville Centre Department of Public Works prior to any alteration of sanitary sewer manholes top and ring.

Adjustment of sanitary sewer manholes shall conform to the requirements of the Village of Rockville Centre. Minimum and maximum heights of brick chimneys shall be 0" and 20" respectively or as directed by the Village or its representative. Only concrete brick shall be used where brickwork is required. Manhole frames shall be set in Portland cement mortar. Manhole covers must be accurately set to finished grade. Warping or feathering of pavements to meet improperly set manholes will not be permitted. Manholes and covers must be clean and free of all debris and road paving materials. Where it is necessary to rotate the manhole frame and cover, new manhole steps of 1" diameter Wrought Iron with a 12" tread, galvanized after bending, shall be installed to the satisfaction of the Engineer.

Adjustment of drainage manholes and drop inlets shall conform to the requirements of the Nassau County Department of Public Works, Highway Division, and specifications. The method of construction for the adjustments shall be at the direction of the Engineer. Only concrete brick will be used brickwork is required. Manhole frames shall be set in Portland cement mortar. Manhole covers must be accurately set to finished grade. Warping or feathering of pavements to meet improperly set manholes will not be permitted. Manholes and covers must be clean and free of all debris and road paving materials.

Unless otherwise specified or ordered, manholes owned by public utilities or local municipalities shall be removed and reset by the owners under supervision of the Contractor and the Engineer, and all requirements as to methods and workmanship shall apply as herein specified for Village, Town or County owned manholes.

MATERIALS

All changes shall be made with the same type of material used in the original construction unless otherwise shown on the Plans, on the standard structure sheets of ordered by the Engineer. All new materials shall comply with the applicable portions of Item 13A and 13B, Paragraph 2, "Materials".

Care shall be taken in removing the existing frames and covers to avoid damage thereto. If any frames or covers are damaged through carelessness on the part of the Contractor, they shall be replaced at their expense.

CONSTRUCTION DETAILS FOR ITEM 16SS-1

This item pertains to sanitary sewer manholes when the change in elevation requires the alteration of the chimney brickwork within the allowable limits of the chimney height.

CONSTRUCTION DETAILS FOR ITEM 16SS-2

This item pertains to sanitary sewer manholes requiring the addition or removal of the R.C.P. section.

CONSTRUCTION DETAILS FOR ITEM 16SS-3

Under this item the Contractor shall adjust drainage manhole and drop inlets be an addition or removal of courses of brick.

- a) In raising the elevation to meet the new grade, the Contractor shall construct a chimney on top of existing manhole, satisfactory to the Engineer.
- b) In lowering the elevation, the Contractor shall remove courses of brick sufficient enough and shall rebuild the corbel at the proper angel to meet the established grade. Existing brick shall be re mortared as required and/or directed by the Engineer.

CONSTRUCTION DETAILS FOR ITEM 16SS-4

Under this item the Contractor shall raise or lower a structure by adding or demolishing and replacing a reinforced concrete slab in order to meet the established grade. The Contractor shall add at least two (2) coursed of new brick under the reinforced concrete slab, either by adding to the existing structure or demolishing enough below grade. Existing brick shall be re mortared as required and/or directed by the Engineer.

CONSTRUCTION DETAILS FOR ITEM 16SS-5

This item pertains to water valve covers when the change in elevation requires the alteration of the elevation within the allowable limits of the chimney height.

METHOD OF MEASUREMENT

The unit price bid for each alteration shall include the cost of furnishing all labor materials equipment all new head frame, castings, metal rings, steps and all other metal or precast reinforced concrete sections.

ITEM 16E-1-ADJUST ELECTRIC MANHOLE FRAME AND COVER (MINOR ADJUSTMENT)
ITEM 16E-2-ADJUST ELECTRIC MANHOLE FRAME AND COVER (MINOR ADJUSTMENT)

DESCRIPTION

The purpose of this item is to establish the minimum requirements for adjusting electric manhole and pull box frames and covers.

Item 16-E-1 This item pertains to electric manholes with covers 4 sq ft or less.

Item 16-E-2 This item pertains to electric manholes with covers larger than 4 sq ft.

MATERIALS

Bricks to be used in the adjustment collar shall be concrete bricks.

Standard cement mortar shall consist of one (1) part Portland cement and two (2) parts fine aggregate.

CONSTRUCTION DETAILS

In asphalt or concrete pavements, the Contractor shall saw cut the surrounding pavements to fill depth and not more than six (6) inches from the outside edge of the frame. The soil shall be removed to the top of the manhole.

In grass or soil areas, the Contractor shall remove the sod or soil to the top of the manhole.

The frame and cover shall be removed, cleaned and painted with two (2) coats of black asphalt paint.

The existing adjustment collar of brick and mortar shall be removed and disposed of by the Contractor. Additional material shall be removed by chipping.

A new adjustment collar of concrete bricks and mortar shall be installed to insure proper grade of the frame and cover.

The disturbed area shall be restored to pre-construction condition or as ordered by the Engineer.

METHOD OF MEASUREMENT

The quantity to be paid will be the number of manhole frame and covers adjusted in accordance with the plans or as ordered by the Engineer.

BASIS OF PAYMENT

The unit price for adjusting manhole frames and covers shall include paint, concrete bricks, mortar, tools, equipment, disposing of soil, restoration of the disturbed area and all labor necessary to complete the work.

ITEM 36D – ASPHALT CONCRETE TYPE 1A

DESCRIPTION

Under this item the Contractor shall construct an asphalt concrete wearing surface for pavement upon a previously prepared foundation, conforming to the lines, grades and typical section shown on the Plans, in accordance with PART THREE, SECTION B, "GENERAL SPECIFICATIONS FOR BITUMINOUS CONCRETE and/or ordered by the Engineer.

The wearing surface for the pavement shall be constructed in one or more courses of asphalt concrete as shown.

MATERIALS AND CONSTRUCTION DETAILS

a. **Proportioning:** All materials used in the mix shall conform to the requirements of PART THREE, SECTION B, Article 4 and shall be proportioned as specified in the table "Composition of Mixtures".

The asphalt concrete top course shall be type 1A and underlayment course shall be Binder.

Asphalt cement used in the mix shall be paving asphalt Grade 85-100, M5, Table 1.

b. **Preparation of Aggregates:** The fine and coarse aggregates to be used in the mix shall be first passed through the dryer and heated to a temperature of 225°F. to 300°F. After the aggregates have been heated and passed through the dryer, they shall be screened to the required gradations and these graded sizes placed in the separate proper storage bins over the mixer unit.

c. **Mixing:** The aggregates shall be introduced into the mixer at a temperature between 225°F. and 300°F. and dry mixed for a period of time necessary to produce a homogeneous mixture as determined by the Engineer, but in no case less than 15 seconds before the asphalt cement is added. The asphalt cement shall be introduced into the mixer at a temperature specified by the Engineer between the limits of 225°F. and 300°F. The mixing period after the introduction of the asphalt cement shall be that period of time required to completely and uniformly coat all aggregate particles with asphalt cement as determined by the Engineer but in no case shall it be less than 45 seconds.

d. **Placing:** Each individual course shall after final compaction meet the density requirements specified in PART THREE, Section B, Article 5, paragraph f, Compacting the Course.

METHOD OF MEASUREMENT

The quantity to be paid for under this item shall be the number of tons of compacted material satisfactorily furnished, placed and incorporated in the completed work in accordance with the Plans, Specifications, and orders of the Engineer.

BASIS FOR PAYMENT

The unit price bid per ton for this item shall include all labor, materials, tools, equipment and incidentals required for the satisfactory completion of the work.

ITEM 37 – BITUMINOUS STABILIZED BASE COURSE

DESCRIPTION

Under this item the Contractor shall furnish and place a base course of bituminous stabilized granular material upon a properly prepared subgrade or foundation course, at the locations, to the lines, grades, and typical section shown on the Plans, in accordance with the Specifications, and/or ordered by the Engineer.

The general specifications for Bituminous Concrete, Part Three, Section "B", shall apply with the following modifications and additions.

MATERIALS

The bituminous stabilized course shall consist of an approved gravel, sand, filler and bituminous binder heated and mixed in an approved continuous or pugmill type mixer.

a. **Aggregates:** Sand and gravel shall consist of selected sand and gravel of such gradation that when properly proportioned, the finished stabilized mixture will conform to the requirements of these specifications and the aggregates shall be of such nature that a thorough coating of the bituminous material to be used in the work, applied to it, will not slough off upon contact with water.

Filler shall consist of selected fine sand, clay or slit of such gradation and proportions that when combined with sand and gravel, the final mixture shall conform to the requirements of the final mix. All materials shall be free from injurious quantities of flaky materials, soft shale, organic matter and other deleterious material.

The materials in the finished stabilized base course mixture when tested dry with U.S. Standard Sieves, shall be combined in such proportions that the gradation as shown in Table 1 below shall be complied with.

TABLE 1

Passing 1-1/2" Square Sieve	100%
Passing 1" Square Sieve	90-100%
Passing ¾" Square Sieve	85-100%
Passing #4 Sieve	60-85%
Passing #10 Sieve	50-75%
Passing #40 Sieve	25-45%
Passing #80 Sieve	8-20%
Passing #200 Sieve	4-12%

b. **Bituminous Material:** The bituminous material to be incorporated in the mix shall meet the requirements of M5 Bituminous Material as specified under Materials of Construction, Part Two, Section "B", except as modified below.

The emulsified asphalt shall be homogeneous and of such character that it will mix with distilled water in all proportions and shall meet the requirements of the following table.

REQUIREMENTS FOR EMULSIFIED ASPHALT

<i>Test Requirements</i>	<i>A.A.S.H.O. Test Method</i>	<i>Limits</i>
Viscosity, Saybolt Furol at 77° F., Sec.	T-59	20-120
Residue at 325° F., percent	T-59	55-65
Oil Distillate, by Volume no less than	-	1
Oil Distillage, by Volume not more than	-	3
Demulsibility: 50ML. of 0.1 N.CaCl ₂ not less than, percent	T-59	30
Sieve Test, not more than percent	T-59	0.05
Settlement 5 days, not more than percent	T-59	5
Stone Coating Test	T-59	shall pass
Sampling Material	T-40	-

The residue from distillation shall have the following characteristics:

<i>Test Requirements</i>	<i>A.A.S.H.O. Test Method</i>	<i>Limits</i>
Specific Gravity at 77° not less than	T-43	0.96
Penetration at 77° 100G., 5 Sec.	T-49	150-225
Soluble in Carbon Tetrachloride, not less than percent	T-45	97
Ductility at 77°F., not less than CMS	T-51	60

The material shall not be cracked.

The settlement test shall be as shown in the Table and will be waived when the emulsified asphalt is manufactured and used in less than five (5) days time.

The Engineer may require that the settlement test be run from the time when the emulsified asphalt sample is received until the material is approved for use.

The base asphalt for the emulsified asphalt shall have a range penetration at 77°F., 100G, 5 Sec. of 150-225. The mixture of emulsified asphalt and aggregate after curing shall develop no indication of re-emulsifying due to its coming in contact with moisture or water. The emulsified asphalt shall be of such stability that it will remain constant and uniform while being combined and mixed with the aggregate,

and shall show satisfactory mixing properties when combined with the aggregates without balling up or becoming hard to tacky.

Coating test shall not show appreciable separation when emulsified asphalt is mixed with the washed, dry, clean aggregate for three (3) minutes. The emulsified asphalt shall coat the aggregate thoroughly.

METHOD

a. **Weather and Seasonal Limitations:** The Bituminous Stabilized Base Course shall be constructed and carried on only when the subgrade or foundation course is properly prepared, is completed to the satisfaction of the Engineer and is in a dry condition. No material shall be placed from October 15th to May 15th, nor when the air temperature in the shade is below 50°F., except by written permission of the Engineer.

b. **Equipment:** The bituminous mixing plant and the plant and placing equipment shall be in accordance with the general specifications, Part Three, Section "B" and shall be inspected and approved by the Engineer.

1) The mixing plant shall have a continuous or batch type pugmill. The plant shall be so designed as to accurately proportion either by volume or by weight so that when the aggregates and bituminous material are incorporated in the mix, a thorough coating of the aggregates will result. The plant shall be provided with a hopper or not less than four (4) compartments so arranged that sand, gravel and filler may be accurately proportioned into the dryer at a uniform rate to produce the final gradation as called for in Table 1 of these specifications. Each compartment shall be of sufficient size and capacity to permit a continuous flow from each bin and provide an adequate amount of properly proportioned aggregates to the mixer.

The plant shall be provided with weighing, volumetric, or other gauging equipment of sufficient and satisfactory capacity. The equipment shall be constructed with devices that will permit easy readjustment of any working part thereof that gets out of adjustment.

The plant shall be equipped with a dryer or other suitable device for controlling the moisture content of the mineral aggregate to the amount equal to or lower than permitted for the proper coating of the mineral aggregate by the bituminous material.

The heating apparatus to meet the requirements shall be suitably designed to heat the mixture to a temperature of from 130° to 220°F. The heating apparatus shall be capable of preparing aggregates to the full rated capacity of the mixing plant and to meet the specification requirements.

2) **Placing Equipment.** The equipment for spreading, shaping and finishing the asphalt stabilized base course shall consist of approved spreading machines, self propelled multiple wheel pneumatic tired rollers, tandem and trench or offset rollers, and whatever other equipment is necessary to properly spread and compact the prepared mixture.

c. **Preparation of the Mixture:** Before being delivered to the roadway, the aggregates shall be mixed with the bituminous material at a central mixing plant. The mixture shall be prepared at a temperature between 130°F., and 212°F. as directed by the Engineer. The percentage of moisture permitted in the aggregates, just prior to the adding of the bituminous material, shall not exceed six (6) percent, including that contained in the emulsified asphalt.

The quantity of bituminous material (emulsified asphalt) for each batch or calibrated amount for continuous mixer shall be determined by the Engineer on the basis of preliminary laboratory tests and sieve analysis of the aggregates. The percentage of emulsified asphalt shall be between five (5) and seven (7) percent by weight and the percentage of the bitumen shall be between three (3) and four point two (4.2) percent by weight.

After the bituminous material is introduced into the mixer, the mixing shall continue for such a period as may be necessary to uniformly coat all of the particles and to obtain a mixture homogeneous in character. Excessive mixing shall be avoided.

The bituminous material shall be incorporated into the mixture in a fluid and workable condition and when heating is required, the temperature shall be such that proper coating of the aggregates will result and shall not be high enough to injure the material or to be unsafe.

d. **Transportation and Delivery of the Mixture:** The mixture shall be transported from the mixing plant to the point of use in pneumatic tired vehicles having tight bodies previously cleaned of all foreign materials. When directed by the Engineer, each load shall be covered with canvas or other suitable material of sufficient size and thickness to protect it from weather conditions.

No loads shall be sent out so late in the day as to interfere with spreading and other necessary manipulation during daylight unless artificial light, satisfactory to the Engineer, is provided.

e. **Spreading and Laying:** At no time shall the course be constructed over a section of the subgrade that has become softened by rain or otherwise defective, until that section has been adequately repaired and is again firm. The subgrade shall be smooth, true to line and grade, and marks and ruts made by the trucks and equipment shall be made smooth, before any materials are placed thereon.

The course shall be placed on the completed subgrade or foundation course with an approved spreader in layers of not more than three (3) inches compacted thickness. The first layer shall be placed and thoroughly compacted to the specified density, with self-propelled multiple wheel pneumatic tired rollers weighing not less than seven and one-half (7-1/2) tons, before the next layer is applied.

Rolling of each course shall be longitudinal. It shall begin at the outer edge of the road and progress toward the center of the road overlapping each preceding passage by an amount not less than one-third (1/3) the width of the roller except that on super-elevated curves, rolling shall progress from the lower to the outer edge. Final rolling of each course shall be done by an approved self-propelled steel wheel tandem roller of the type and size specified.

The surface of each course shall be finished true to grade and cross section and no portion of the finished surface shall vary more than one-quarter (1/4) inch when tested with a sixteen foot straightedge.

Each successive layer shall be spread and compacted in the same manner as herein stated except that the surface of the previously prepared layers shall be thoroughly cleaned before the next layer shall be spread. All loose or deleterious material shall be swept off with a power broom supplemented by hand brooming where necessary and all loose materials removed from the paving area.

METHOD OF MEASUREMENT

The quantity to be paid for under this item shall be the number of tons of compacted material satisfactorily furnished, placed and incorporated in the completed work in accordance with the Plans, Specifications and the orders of the Engineer.

BASIS FOR PAYMENT

The unit price bid per ton for this item shall include all labor, materials, tools, equipment and incidentals required for the completion of the work.

ITEM 58SS-1 SAW CUTTING EXISTING PORTLAND CEMENT CONCRETE
ITEM 58SS-2 SAW CUTTING EXISTING ASPHALT PAVEMENT

DESCRIPTION

Under this item the Contractor shall cut existing Portland Cement Concrete, asphalt or other materials used in pavements, walks, driveways, and aprons, etc., preparatory to its removal where and to the lines shown on the plans and/or as directed by the Engineer.

METHOD GENERAL

The work performed under this item is to establish a neat, true joint line of required depth between the existing pavement, walk, driveway, driveway apron, etc., retained and the abutting construction to be placed subsequently.

METHOD DETAIL ITEM 58SS-1:

The equipment to be employed shall be a rotary blade, power driven concrete saw of an approved type and of sufficient capacity to efficiently accomplish the required work.

The depth of the cut shall be twenty percent (20%) of the thickness of the existing concrete course but in no case shall this depth of cut be less than one inch (1"). The cut shall be made plumb, to a true line and in such manner as will permit breaking and removal of the abandoned concrete without damage or injury to the sawn face of the cut. Where necessary to obtain the required depth, the saw cutting shall be performed in stages.

METHOD DETAIL ITEM 58SS-2:

For saw cutting existing asphalt pavement, walk, driveway, driveway apron, etc., the above method may be employed except the depth of the cut shall be twenty percent (20%) of the thickness of the pavement, but in no case shall be less than one and one half 1-2") inches.

The cut shall be made plumb, to a true line and in such a manner as will permit breaking and removal without damage to the retained pavement. Where necessary to obtain the required depth, the saw cutting shall be performed in stages.

BASIS OF PAYMENT

The unit price bid per linear foot for this item shall include the cost of all labor, materials, tools, equipment and incidentals necessary to satisfactorily complete the required work. The breaking and removal of existing concrete and the payment therefore is provided under other items in the contract.

ITEM 116A – PROFILING AND REMOVAL OF CONCRETE AND/OR ASPHALT PAVEMENT

DESCRIPTION

The work under this item shall consist of the milling, shaping and removal of portions of existing pavement surfaces by a cold milling process, within the areas indicated on the plans, utilizing equipment and procedures meeting the requirements of this specification.

All materials removed during this milling process, including any foreign debris existing within or on the pavement, shall be disposed of by the contractor at a site to be obtained by him or at a specific location if designated in the contract documents.

EQUIPMENT

The milling machine shall be designed and built for milling pavements. It shall reach the depth desired in as many passes as necessary and shall produce a milled surface free from gouges or ridges deeper or higher than 3/8 inches.

The machine shall be equipped with a means to control dust and other particulate matter created by the cutting action.

The milling machine shall be capable of producing a finished profile and cross slope within ¼ inch of the referenced elevation as shown on the plans and/or directed by the engineer.

The contractor shall provide equipment to pick up, remove and immediately clean the milled surface of all loose material without producing any objectionable dust. A dust free surface shall result from the cleaning.

CONSTRUCTION DETAILS

The cold milling of the existing pavement shall be performed where indicated on the plans and shall produce a reasonably smooth surface. The method used to control profile and cross slope during milling shall be subject to the approval of the engineer.

Areas not accessible to the milling machine, such as around and/or adjacent to inlets, manholes, curbs and transverse joints on structures, may be removed, shaped and cleaned by a small milling machine, handwork, or other methods approved by the engineer.

The milled material, including the removed by other means, shall be immediately removed from the roadway surface. The milled material shall become the property of the contractor and be disposed of by him unless otherwise indicated on the plans or in the approval.

The milling operation shall be performed in such a manner that the milled area shall be immediately cleaned of all loose material and dust, without producing objectionable dust, prior to opening to traffic. Any milled material that becomes wet and/or is not picked up by the equipment shall be removed by the contractor before the milling continues.

Damage to milled surfaces, prior to overlaying, resulting from traffic or other causes such as, but not limited to raveling, fuel spillage, or any contaminants which would inhibit bond, shall be repaired or re-milled by the contractor in a manner approved by the engineer.

The contractor shall maintain drainage at catch basins in a manner approved by the engineer.

METHOD OF MEASUREMENT

The quantity to be paid under this item will be the number of square yards of pavement actually milled and disposed of in accordance with the plans and specifications and/or as directed by the engineer.

In no case will a deduction in area be made for minor un-milled areas due to catch basins, manholes, transverse joints, or minor low areas in pavements (10 square yards or less) from the measured surface area that has been milled.

BASIS OF PAYMENT

The unit price bid per square yard shall include the cost of furnishing all labor and equipment necessary to complete the milling, including the removal of pavement by other means, the removal and disposal of milled material, the removal and hauling of milled material to a designated storage area when indicated on the plans, or proposal and cleaning the resulting surface after milling.

The cost of maintaining drainage and of providing temporary pavement wedges of asphalt concrete around drainage structures, manholes, valve boxes, and the beginning and end of milled pavement shall be included in the price bid for "maintenance and protection of traffic."

ITEM 132X – PLOWABLE RAISED REFLECTORIZED PAVEMENT MARKERS

Description:

Under this item the Contractor shall furnish and install plowable raised reflectorized pavement markers at the locations and in accordance with patterns indicated on the Plans or painted on the road surface and/or as ordered by the Engineer, and in conformance with these specifications. All layout of the markers will be performed by the contractor and approved by Village personnel.

Materials:

The plowable raised reflectorized pavement marker shall consist of cast iron housing (Stimsonite Model Lifelite 101LPCR or an Approved Equal), which is recessed and anchored by epoxy resin into the pavement, forming triple equally spaced hard-faced ramps which will carry a carbide edged snow plow blade over its pressured mounted adhesive acrylic prismatic reflector without damage to the housing or the reflector. Components shall meet the following requirements:

1. Cast Iron Housing – The housing shall be a one-piece cast-iron casting designed to provide a base for the protection for a nominal 4 inch x 2 inch Acrylic Prismatic Reflector. When recessed into the pavement it shall provide four hard faced ramps (one to each side of the reflector in both directions) at least 9 ¼" (23.5 cm) in length projecting no more than 7/16 inch (1.11 cm) above the plane of the pavement surface. These ramps shall be a minimum of ¾ inch (1.9 cm) in width where they are adjacent to the reflector. Directly below each ramp and extending the full length of the ramp there shall be a sawtooth anchoring keel of minimum 5/16 inch (0.8 cm) thickness. The keels shall be shaped for anchoring into twin parallel saw cut grooves which will form a circular segment with the pavement surface; they shall be on 5.4 inch (13.7 cm) centers and extend to a minimum depth of 1-5/16 inch (3.3 cm) in the area of the reflector. The base area of the housing between the ramps shall be at least 4-1/2 inches (11.4 cm) in length, 4 inches (10.0 cm) in width and provide a recessed area for positive alignment of the pressure adhesive mounted reflector. It shall be so shaped that it forms a circular segment in side section through its center line so it can be recessed into a saw cut dish. The casting shall weigh a minimum of 4.7 pounds, and shall have a reflector pressure mounted on it as described hereinafter. Other housing designs that can be demonstrated to be effective can be submitted for approval, along with documentation proving comparable endurance with the above design.
2. Epoxy Adhesive – Epoxy adhesive used to anchor the cast iron housing shall be as approved by the manufacturer of the pavement marker.
3. Reflector Marker – The marker shall consist of an acrylic plastic (methyl methacrylate) shell, conforming to Federal Specification L-P-380a, Type 1, Class 3 filled with a tightly adherent potting compound to which is permanently adhered a pressure sensitive adhesive. The shell shall contain one and/or two prismatic reflective faces to reflect incident light. The shape shall be of a shallow frustum of a pyramid. It shall meet the following specifications:

a) Construction

Overall Dimension	3 15/16" x 1 7/8" x 3/8 (4" x 2" x .400 nominal)
Slope of reflective face	30 degrees
Area of each reflective face	1.62 sq. inch min.
Thickness of adhesive layer	0.12" max. 0.40 min.

b) Physical Properties

Breaking Strength	Marker 2000 lbs. Minimum (1" diam. Load, 3" diam. Support)
Annulus	1/4" wall

c) Color – The color shall be as specified on the Estimate Sheets, and/or Plans, and/or as noted on the road surface.

4. Sheer Strength – adhesive 15 psi at 70 degrees F. (application at 60 psi, 70 degrees F)

Optical Properties – Specific Intensity at 0.20 degrees Obs.

Horz. Ent. Angle	S.I.
0 degrees	3.0
20 degrees	1.2

Construction Details:

1. In accordance with the manufacturer's installation instructions, which shall become part of this specification and at the sites shown on the Plans, or marked on the road, the Contractor shall rout a recess into the pavement for the cast iron housing. Cutting shall be with a specially set up concrete saw having the mandrel of appropriately sized pavement blades forming a cutting head. The recess shall then be thoroughly cleaned of all debris and coatings, which would disrupt the epoxy bond, and partially filled with the epoxy adhesive. The marker shall then be placed into the epoxy filled recess and sufficient (foot) pressure applied to seat the casting properly as directed by the Engineer. Any damage to pavement surfaces to remain shall be repaired by the Contractor to the satisfaction of the Engineer at no additional expense to the County.

2. Plowable markers are to be installed in accordance with the following:

A marker with blue/blue lenses shall be installed in the middle of the roadway in the vicinity of a fire hydrant.

Total estimate of Blue/Blue Markers. 7

Locations:

Contractor shall install Item 132X (Blue/Blue) Plowable Raised Reflectorized Paint Markers @ the any location that is in the proximity of a fire hydrant.

Method of Measurement:

Plowable raised reflectorized pavement markers shall be measured as the number of complete markers furnished and installed.

Basis of Payment:

The unit price bid for each plowable raised reflectorized pavement marker completely installed shall include all labor, materials, tools, equipment and incidentals as required to complete the work.

ITEM 134X – LOCATE, SAW AND SEAL JOINTS IN ASPHALT OVERLAYS

DESCRIPTION

The work shall consist of saw cutting, cleaning, and sealing transverse and longitudinal joints in new bituminous concrete overlays and shoulders. Bituminous concrete pavement joints shall be constructed over, and in line with, the existing underlying Portland cement concrete joints in accordance with plans, specifications, and as directed by the engineer.

MATERIALS

Joint Sealant – The sealant shall meet the requirements of ASTM D3405. Application for approval of sealant material by the contractor shall be submitted to the engineer.

The joint sealant compound shall be packaged in sealed containers. Each container shall be clearly marked with the name of the manufacturer, the trade name of the sealant, the manufacturer's batch and lot number, the pouring temperature, and the safe heating temperature.

Bond Breaker Tape – Bond breaker tape shall consist of regular masking tape or a suitable bond breaker tape designed for use with hot poured sealants. The width of the tape may be equal to but not more than 1/8" narrower than the width of the sawcut.

CONSTRUCTION DETAILS

General – The contractor shall conduct his operation so that sawcutting of joints, cleaning, and sealing is a continuous operation. Traffic shall not be allowed to knead together or damage the sawed joints. Sawed joints should be filled and cured prior to opening to traffic. Sawed joints not sealed before traffic is allowed on the overlay, shall be resawed when sawing and sealing operations resume at no additional cost. Sawcutting, cleaning, and sealing shall be done within seven (7) days after placement of the top course of asphalt pavement.

If the top course is to be placed the following spring, due to seasonal paving limitations, all underlying courses shall receive a 1" deep by 1/8" wide sawcut to facilitate and control reflective cracking as well as to provide a means of properly referencing the sawcut to eventually be made in the top course. These sawcuts shall be made in all underlying courses within seven (7) days after the underlying courses are placed and before any evidence of reflective cracking has developed. Sealing of

these sawcuts will not be required. Payment for sawcutting all underlying courses shall be included in the bid price for sawing and sealing.

Sawcutting of Joints – The contractor shall sawcut the joints to the appropriate dimensions shown in Figure 1, based on the existing pavement slab length and new overlay depth. The sawcut joints shall be directly over the existing Portland cement joints and shall be accurately located by a method employing pins and string line. The pins shall be accurately located prior to paving. Details of the method for locating the sawcuts shall be subject to the approval of the engineer.

The blade or blades shall be of such size and configuration that the desired dimensions of the sawcut can be made with one pass. Either dry or wet cutting will be allowed.

The transverse sawcut joints shall normally extend the full width of the pavement and shall extend into the asphalt shoulder to a distance three (3) feet beyond the edge of the underlying Portland cement concrete pavement edge, unless otherwise detailed on the plans or in the proposal. Existing transverse joints that are offset at the longitudinal joint by more than 1", measured between the centers of the joint cavities, shall require separate sawcuts terminating at the longitudinal joints.

Cleaning – Dry sawed joints shall be thoroughly cleaned with a stream of air sufficient to remove any dirt, dust or deleterious matter adhering to the joint walls or remaining in the joint cavity. Wet sawed joints shall be thoroughly cleaned with a water blast (50 psi minimum) immediately after sawing to remove any sawing slurry, dirt or deleterious matter adhering to the joint walls or remaining in the joint cavity. Wet sawed joints shall be blown with air to provide dry joint surfaces prior to sealing.

All sawing slurry from the wet sawing process shall be immediately flushed from the pavement surface. Dry dust and material from the dry sawing process shall be blown or brushed off the pavement surface. This operation shall be performed in such a manner that the affected areas will be immediately cleaned of all residual material and dust prior to opening to traffic.

Sealing – The joint sealant material shall be heated in a kettle or melter constructed as a double boiler, with the space between the inner and outer shells filled with oil or other heat transfer medium. The equipment shall include positive temperature control, mechanical agitation, recirculation pumps and thermometers for continuous reading of the temperature of both the sealing compound and the heat transfer medium. The applicator wand shall be heated or insulated to maintain the pouring temperature of the sealant during placing operation. Pour pots or similar devices shall not be used to fill sawed joints.

A copy of the manufacturer's recommendations pertaining to the heating and application of the joint seal material shall be submitted to the engineer prior to the commencement of work. These recommendations shall be adhered to and followed by the contractor. The temperature of the sealer in the field application equipment shall never exceed the safe heating temperature recommended by the manufacturer. Any given quantity of material shall never be heated at the pouring temperature for more than six (6) hours.

After cleaning, and just prior to sealing, a bond breaker tape shall be placed in the bottom of the sawcut joint. The joints shall be sealed when the sealant material is at the pouring temperature recommended by the manufacturer. The sealant shall fill the joint such that after cooling, the level of the sealer will not be greater than 1/8" below the pavement or shoulder surface. Care shall be taken in the sealing of the joints so that the joints are not overfilled, and the final appearance will present a neat fine line. The applicator wand shall be returned to the machine and the joint sealant material recirculated immediately upon completion of each joint sealing. Sand shall not be spread on the sealed joints to allow early opening to traffic. Sealant shall be tack free prior to opening to traffic.

METHOD OF MEASUREMENT – The quantity to be paid for under this item shall be the number of linear feet of pavement joints properly sawed and sealed in accordance with the plans, these specifications, and to the satisfaction of the engineer.

BASIS OF PAYMENT – The unit price bid per linear foot shall include the cost of furnishing all labor, material and equipment necessary to complete the work as specified.

ITEM 398 – DRY BOUND DENSE GRADED AGGREGATE BASE

SCOPE OF WORK

The work under this item included the furnishing, placing, compacting and fine grading of the dense-graded aggregate base course described herein to the compacted thickness specified in the proposal, addenda or on the plans.

MATERIALS

- A. The base coarse blend shall consist of a natural or artificial mixture of soils and crushed materials. The base course blend shall be well graded and shall have the following mechanical gradation:

<u>SCREEN SIZE</u>	<u>% PASSING</u>
12"	100%
1"	90% - 100%
2"	66% - 85%
3/8"	55% - 75%
#4	40% - 55%
#8	30% - 45%
#16	22% - 36%
#30	11% - 27%
#50	6% - 20%
#100	3% - 15%
#200	1% - 10%

- B. The portion of the base course blend that is smaller than the No. 40 screen shall have a Plasticity Index – 0, according to ASTM Designation D-424, Latest Edition. The coarse aggregate shall have a resistance to abrasion by the Los Angeles abrasion test of not more than 50%.
- C. The coarse aggregate, when subject to five cycles of the soundness test, shall have a weighted loss of not more than 20 percent when sodium sulfate is used or 30 percent when magnesium is used.
- D. CBR VALUE: The laboratory compacted California Bearing Ratio (ASTM D 1883) of the material shall be not less than 100 after 96 hours of soaking. The test specimen shall be compacted at optimum moisture by the method outlined in ASTM D 1557 Method D.
- E. SAMPLING: All samples shall be taken in accordance with applicable ASTM standards. Final acceptance samples shall represent a lot of material of a size corresponding to not more than 2,000 cubic yards or a full day's production for delivery to a given project site, whichever is smaller. No sample, for whatever

purpose taken, should be composed of less than three increments selected at random from the full flow of material which would be required to fill a normal delivery truck, that amount being considered a Batch. Test results representing at least three batches, sampled in the prescribed manner, shall be required to represent each Lot under consideration for acceptance.

CONSTRUCTION METHODS:

- A. The materials shall be delivered to the job site in a well-mixed unsegregated state. All deliveries shall be accompanied by printed tickets clearly stating the weight of stone delivered. The Engineer reserves the right to reject any or all deliveries not accompanied by such tickets.
- B. The Engineer may obtain a sample of the material at the time of weighing in order to verify the dry weight of the base course and to substantiate the measurements by yield calculations.
- C. The material shall be spread on the prepared subgrade using an approved spreader, to a loose depth required to provide the required thickness of the base course when compacted to the specified density. The individual layer thickness shall not be less than three (3) inches or more than six (6) inches after compaction. When the base course is constructed in more than one (1) layer, the previously constructed layers shall be cleaned of loose and foreign matter.
- D. The base course shall be compacted to a minimum density of not less than 100% of the maximum density of the material as determined by "The Method of Test for Moisture Density Relations of Soil, Using a 10 lb Rammer and an 18 inch Drop". ASTM D-1557.
- E. The compaction may be accomplished by any means that will not cause segregation, and that will provide a surface that is smooth and within the tolerances of this specification. The material should be damp or moist by not wet during the compaction operation to promote densification.

Compaction between curbs shall be performed by beginning at the curb line and compacting inward toward the center.

- F. Segregation occurring during the construction of the base or before the wearing surface is placed shall be corrected by remixing or by removing the segregated area and replacing it with non-segregated material. If the subgrade material becomes churned up or mixed with the base course for any reason whatsoever before the wearing surface is placed, the base course shall be removed, the subgrade compacted and graded, and clean stone base course placed in accordance with this specification. The Contractor shall receive no additional compensation for this correction.
- G. After compaction, the top surface shall not extend above the theoretical elevation for the course; and after testing with a straight edge or parabolic template ten (10) feet in length, any depression over one-fourth (3) of an inch below the theoretical

grade shall be satisfactorily eliminated.

MAINTENANCE:

The surface of the base course shall be maintained within the tolerances of paragraph 3g of this specification until the succeeding course is placed.

- A. The surface of the base course shall be maintained within the tolerances of Paragraph 3g of this specification until the succeeding course is placed.
- B. The base course shall be maintained in an unsegregated state until the succeeding course is placed. The correction of segregation shall be done in accordance with paragraph 3f of this specification.
- C. The base course shall be maintained free of contamination from the subgrade material or other soil until the succeeding course is placed. Correction of this condition shall be done in accordance with paragraph 3f of this specification.
- D. The cost of maintaining the base course in an acceptable condition shall be included in the price bid for Item 398.

MEASUREMENT AND PAYMENT:

The quantity to be paid for under this item shall be in the number of cubic yards of compacted base course measured in place and accepted in accordance with these specifications.

- A. The quantity to be paid for under this item shall be the number of cubic yards of compacted base course measured in place, and accepted in accordance with these specifications.
- B. The unit price bid per cubic yard for this item shall include the cost of all labor, materials, plant equipment and other incidentals required to complete the work in accordance with these specifications.

ITEM 422LX – REPLACE LOOP TRAFFIC DETECTORS

1. DESCRIPTION

Under the item, the Contractor shall remove the existing traffic control detector as required and shall install new traffic control detectors at the locations shown on the plans.

2. OWNER

The traffic control detector or detectors to be replaced under this item are part of a traffic control system operated by either the New York State Department of Transportation Division of Traffic Engineering or the Nassau County Traffic Engineering Department. The Contractor will be notified prior to construction of the appropriate agency for each traffic control detector to be replaced.

3. METHOD

The traffic control detectors shall be installed in accordance with the requirements of the appropriate agency. All work shall be performed by an approved subcontractor. The Contractor shall notify the appropriate agency two (2) weeks prior to starting any work in the vicinity of the traffic control system. After the traffic control device has been installed, the Contractor shall obtain verification from the appropriate agency that the installation is acceptable to them.

4. METHOD OF MEASUREMENT

Payment will be made by location for each traffic control loop detector replaced and accepted by the appropriate agency.

5. BASIS OF PAYMENT

The Unit price bid for this item shall include all labor, equipment, materials and incidentals (including saw cutting) necessary to remove the existing detector and to install the new detector complete with all connections, wire and saw cutting.

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ITEM 603/RVC-4
4" and 12" REFLECTORIZED PAINTED STRIPING

DESCRIPTION:

Under this item the Contractor shall furnish, deliver and apply all reflectorized painted striping (3 coats), in accordance with the plans and details and/or where designated by the Engineer.

METHOD OF MEASUREMENT:

The quantity to be paid for shall be for each linear foot applied in accordance with the plans, specifications and/or as directed by the Engineer.

BASIS OF PAYMENT:

The unit price bid for this item shall include the cost of furnishing all labor, materials, tools and equipment necessary to furnish, deliver and apply all reflectorized painted striping.

**Incorporated Village of Rockville Centre
Nassau County, NY**

DRAFT CONTRACT

The Vendor/Contractor is advised to closely review the attached draft contract.

If the Board of Trustees of the Village votes to accept your proposal for the project described in the Bid or Request for Proposal Specifications, the successful proposer will be expected to sign an agreement in the attached form in a timely fashion.

Any objections to the language in this agreement must be provided in writing with your bid/proposal response.

Please sign below as confirmation that you have read, understand, and agree to abide with these instructions.

Please sign below and return it with the bid/proposal response.

I _____ of _____
(NAME) (COMPANY NAME)

will provide comments on the contract with the bid/proposal response.

Signature: _____

Title: _____

Date: _____



FIXED PRICE CONSTRUCTION CONTRACT

VILLAGE OF ROCKVILLE CENTRE

FIXED PRICE CONSTRUCTION CONTRACT BETWEEN OWNER AND CONTRACTOR

This FIXED PRICE CONSTRUCTION CONTRACT BETWEEN OWNER AND CONTRACTOR (the "Contract") is made and entered into by and between

VILLAGE OF ROCKVILLE CENTRE

(The "Owner")

and

(The "Contractor").

This Contract is executed under seal, and shall be effective on the date executed by the last party to execute it.

This Contract is for the construction of a project identified as

Various asphalt improvements throughout Village

the ("Project").

NOW, THEREFORE, in consideration of the mutual promises, covenants and agreements stated herein, and for other good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties agree:

1.

DOCUMENTS INCORPORATED BY REFERENCE

This Contract includes the plans and specifications for the Project identified thereon as such, plus the following (if any):

all of which are hereby incorporated herein by reference and made a part hereof. Directives issued hereafter, and any other amendments executed by the Owner and the Contractor, shall become and be a part of this Contract. Documents not included or expressly contemplated in this Paragraph 1 do not, and shall not, form any part of this Contract.

2.

REPRESENTATIONS OF THE CONTRACTOR

In order to induce the Owner to execute this Contract and recognizing that the Owner is relying thereon, the Contractor, by executing this Contract, makes the following express representations to the Owner:

- (A) The Contractor is fully qualified to act as the contractor for the Project and has, and shall maintain, any and all licenses, permits or other authorizations necessary to act as the contractor for, and to construct, the Project;
- (B) The Contractor has become familiar with the Project site and the local conditions under which the Project is to be constructed and operated;
- (C) The Contractor has received, reviewed and carefully examined all of the documents which make up this Contract, including, but not limited to, the plans and specifications, and has found them in all respects to be complete, accurate, adequate, consistent, coordinated and sufficient for construction.

INTENT AND INTERPRETATION

With respect to the intent and interpretation of this Contract, the Owner and the Contractor agree as follows:

- (A) This Contract, together with the Contractor's and Surety's performance and payment bonds for the Project, if any, constitute the entire and exclusive agreements between the parties with reference to the Project, and said Contract supersedes any and all prior discussions, communications, representations, understandings, negotiations, or agreements.
- (B) Anything that may be required, implied or inferred by the documents which make up this Contract, or any one or more of them, shall be provided by the Contractor for the Contract Price;
- (C) Nothing contained in this Contract shall create, nor be interpreted to create, privity or any other relationship whatsoever between the Owner and any person except the Contractor;
- (D) When a word, term, or phrase is used in this Contract, it shall be interpreted or construed first, as defined herein; second, if not defined, according to its generally accepted meaning in the construction industry; and third, if there is no generally accepted meaning in the construction industry, according to its common and customary usage;
- (E) The words "include", "includes", or "including", as used in this Contract, shall be deemed to be followed by the phrase, "without limitation";
- (F) The specification herein of any act, failure, refusal, omission, event, occurrence or condition as constituting a material breach of this Contract shall not imply that any other, non-specified act, failure, refusal, omission, event, occurrence or condition shall be deemed not to constitute a material breach of this Contract;
- (G) The Contractor shall have a continuing duty to read, examine, review, compare and contrast each of the documents which make up this Contract, shop drawings, and other submittals and shall give written notice to the Owner and the Architect of any conflict, ambiguity, error or omission which the Contractor may find with respect to these documents before proceeding with the affected work. The express or implied approval by the Owner or the Architect of any shop drawings or other submittals shall not relieve the Contractor of the continuing duties imposed hereby, nor shall any such approval be evidence of the Contractor's compliance with this Contract. The Owner has requested the Architect to only prepare documents for the Project, including the

plans and specifications for the Project, which are accurate, adequate, consistent, coordinated and sufficient for construction. **HOWEVER, THE OWNER MAKES NO REPRESENTATION OR WARRANTY OF ANY NATURE WHATSOEVER TO THE CONTRACTOR CONCERNING SUCH DOCUMENTS.** The Contractor again hereby acknowledges and represents that it has received, reviewed and carefully examined such documents, has found them to be complete, accurate, adequate, consistent, coordinated and sufficient for construction, and that the Contractor has not, does not, and will not rely upon any representations or warranties by the Owner concerning such documents, as no such representations or warranties have been or are hereby made;

- (H) In the event of any conflict, discrepancy, or inconsistency among any of the documents which make up this Contract, the following shall control:
- (1) As between figures given on plans and scaled measurements, the figures shall govern;
 - (2) As between large scale plans and small scale plans, the large scale plans shall govern;
 - (3) As between plans and specifications, the requirements of the specifications shall govern;
 - (4) As between these documents and the plans or specifications, this document shall govern.
- (I) The words "Day" - "Days" refer to calendar day(s) throughout the entire Contract.
- (J) The words "Engineer" and "Architect" shall refer to the Inc. Village of Rockville Centre's Engineer or Consultant throughout the entire Contract, unless otherwise defined by the Village.

4.

OWNERSHIP OF THE DOCUMENTS WHICH MAKE UP THE CONTRACT

The documents which make up this Contract, and each of them, as well as any other documents furnished by the Owner, shall remain the property of the Owner. The Contractor shall have the right to keep one (1) copy of the Contract upon completion of the Project; provided, however, that in no event shall the Contractor use, or permit to be used, any portion or all of such Contract on other projects without the Owner's prior written authorization.

CONTRACTOR'S PERFORMANCE

The Contractor shall perform all of the work required, implied or reasonably inferable from this Contract including, but not limited to, the following:

- (A) Construction of the Project;
- (B) The furnishing of any required surety bonds and insurance;
- (C) The provision or furnishing, and prompt payment therefor, of labor, supervision, services, materials, supplies, equipment, fixtures, appliances, facilities, tools, transportation, storage, power, fuel, heat, light cooling, or other utilities, required for construction and all necessary building permits and other permits required for the construction of the project;
- (D) The creation and submission to the Owner of detailed and comprehensive as-built drawings depicting all as-built construction. Said as-built drawings shall be submitted to the Owner upon final completion of the Project and receipt of same by the Owner shall be a condition precedent to final payment to the Contractor.

TIME FOR CONTRACTOR'S PERFORMANCE

- A) The Contractor shall respond to the Villages' request for asphalt repairs and accomplish Final Completion (Completion) of the Project within 30 days.
(WEATHER PERMITTING)
- B) Owner and Contractor recognize that time is of the essence in this Agreement. Owner and Contractor also recognize the delays, expense and difficulties involved in proving in a legal or arbitration proceeding, the actual loss suffered by the Owner if the work is not completed on time. Accordingly, instead of requiring any such proof, Owner and Contractor agree that as liquidated damages for delay (but not as a penalty), the contractor shall pay Owner **Five Hundred 00/100 Dollars (\$500.00)** per day for each day that expires after the time specified as Final Completion.

When the Owner reasonably believes that Completion will be inexcusably delayed, the Owner shall be entitled, but not required, to withhold from any amounts otherwise due the Contractor an amount then believed by the Owner to be adequate to recover liquidated damages applicable to such delays. If and when the Contractor overcomes the delay in achieving Completion, or any part thereof, for which the Owner has withheld payment, the Owner shall promptly release to the Contractor those funds withheld, but no longer applicable, as liquidated damages; liquidated damages, under

- this contract, may be waived by the Village Administrator.
- C) All limitations of time set forth herein are material and are of the essence of this Contract.
 - D) Extension of time (6 (A)) due to unforeseen circumstances must be granted in writing by Owner.
 - E) Since time is of the essence, the following shall govern. Contractor shall, in addition to contracted work, proceed with the new work, as directed by the authorized representative of the Village. This new work is to proceed in a timely manner even if work is directed prior to finalizing costs associated with the new work. Failure to comply in full with the new work directive, shall hold the contractor to all conditions of Section 14 of this agreement. An extension of time, if warranted, shall be granted in writing, by owner.

7.

FIXED PRICE AND CONTRACT PAYMENTS

- (A) The Owner shall pay, and the Contractor shall accept, as full and complete payment for the Contractor's timely performance of its obligations hereunder the fixed price of _____ Dollars (\$ _____)
The price set forth in this Subparagraph 7(A) shall constitute the Contract Price.
- (B) When payment is received from the Owner, the Contractor shall immediately pay all materialmen, laborers and suppliers the amounts they are due for the work covered by such payment. In the event the Owner becomes informed that the Contractor has not paid a materialman, laborer, or supplier as provided herein, the Owner shall have the right, but not the duty, to issue future checks and payment to the Contractor of amounts otherwise due hereunder naming the Contractor and any such materialman, laborer, or supplier as joint payees. Such joint check procedure, if employed by the Owner, shall create no rights in favor of any person or entity beyond the right of the named payees to payment of the check and shall not be deemed to commit the Owner to repeat the procedure in the future;
- (C) Neither payment to the Contractor, utilization of the Project for any purpose by the Owner, nor any other act or omission by the Owner shall be interpreted or construed as an acceptance of any work of the Contractor not strictly in compliance with this Contract;
- (D) The Owner shall have the right to refuse to make payment and, if necessary, may demand the return of a portion of all of the amount previously paid to the Contractor due to:

- (1) The quality of a portion, or all, of the Contractor's work not being in accordance with requirements of the Contract;
- (2) The quantity of the Contractor's work not being as represented in the Contractor's Payment Request, or otherwise;
- (3) The Contractor's rate of progress being such that, in the Owner's opinion, substantial or final completion, or both, may be inexcusably delayed;
- (4) The Contractor's failure to use Contract funds, previously paid the Contractor by the Owner, to pay Contractor's Project-related obligations including, but not limited to, subcontractors, laborers and material and equipment supplies;
- (5) Claims made, or likely to be made, against the Owner or its property;
- (6) Loss caused by the Contractor;
- (7) The Contractor's failure or refusal to perform any of its obligations to the Owner.

In the event that the Owner makes written demand upon the Contractor for amounts previously paid by the Owner as contemplated in this Subparagraph 7(D), the Contractor shall promptly comply with such demand;

- (E) When the Project is finally complete and the Contractor is ready for a final inspection, it shall notify the Owner and the Architect thereof in writing. Thereupon, the Architect will perform a final inspection of the Project. If the Architect confirms that the Project is complete in full accordance with this Contract and that the Contractor has performed all of its obligations to the Owner hereunder, the Architect will furnish a final Approval for Payment to the Owner that the Project is complete and the Contractor is entitled to the remainder of the unpaid Contract Price, less any amount withheld pursuant to this Contract. If the Architect is unable to issue its final Approval for Payment and is required to repeat its final inspection of the Project, the Contractor shall bear the cost of such repeat inspection(s), which costs may be deducted by the Owner from the Contractor's final payment;
- (F) Prior to being entitled to receive any payment, and as a condition precedent thereto, the Contractor shall furnish the Owner, In the form and manner required by Owner, if any, with a copy to the Architect:
- (1) An affidavit that all of the Contractor's obligations to laborers, equipment or material suppliers, or other third parties in connection with the Project, have been paid or otherwise satisfied;

- (2) If required by the Owner, separate releases of lien or lien waivers from each subcontractor, lower tier subcontractor, laborer, supplier or other person or entity who has, or might have a claim against the Owner or the Owner's property;
- (3) If applicable, consent(s) of surety to final payment;
- (4) All product warranties, operating manuals, instruction manuals and other record documents, drawings and things customarily required of the Contractor, or expressly required herein, as a part of or prior to Project closeout;

8.

INFORMATION AND MATERIAL SUPPLIED BY THE OWNER

- (A) The Owner shall furnish to the Contractor, prior to the execution of this Contract, any and all written and tangible material in its possession concerning conditions below ground at the site of the Project. Such written and tangible material is furnished to the Contractor only in order to make complete disclosure of such material as being in the possession of the Owner and for no other purpose. By furnishing such material, the Owner does not represent, warrant, or guarantee its accuracy either in whole, in part, implicitly or explicitly, or at all, and shall have no liability therefor. The Owner shall also furnish, if appropriate, the legal description of the Project site, and any required survey;
- (B) The Owner shall obtain all required authorizations, approvals, easements, and the like excluding the building permit and other permits or fees required of the Contractor by this Contract, or permits and fees customarily the responsibility of the Contractor;
- (C) The Owner will provide the Contractor Five (5) Copies of the complete Contract.

The Contractor will be charged, and shall pay the Owner Twenty-five Dollars (\$25.00) per additional copy of the Contract which it may require.

9.

CEASE AND DESIST ORDER

In the event the Contractor fails or refuses to perform the work as required herein, the Owner may instruct the Contractor to cease and desist from performing further work in whole or in part. Upon receipt of such instruction, the Contractor shall immediately cease and desist as instructed by the Owner and shall not proceed further until the cause for the Owner's instructions has been corrected, no longer exists, or the Owner instructs that the work may resume. In the event that the Contractor fails and refuses within seven (7) days of receipt of same to provide adequate assurance to the Owner that the cause of such instructions will be eliminated or

corrected, then the Owner shall have the right, but not the obligation, to carry out the work with its own forces, or with the forces of another contractor, and the Contractor shall be fully responsible and liable for the costs of performing such work by the Owner. The rights set forth herein are in addition to, and without prejudice to, any other rights or remedies the Owner may have against the Contractor.

10.

DUTIES, OBLIGATIONS AND RESPONSIBILITIES OF THE CONTRACTOR

In addition to any and all other duties, obligations and responsibilities of the Contractor set forth in this Contract, the Contractor shall have and perform the following duties, obligations and responsibilities to the Owner:

- (A) The Contractor is again reminded of its continuing duties set forth in Subparagraph 3(G) which are by reference hereby incorporated in this Subparagraph 10(A). The Contractor shall not perform work without adequate plans and specifications, or, as appropriate, approved shop drawings, or other submittals. If the Contractor performs work knowing or believing it involves an error, inconsistency or omission in the Contract without first providing written notice to the Architect and Owner, the Contractor shall be responsible for such work and pay the cost of correcting same;
- (B) All work shall strictly conform to the requirements of this Contract;
- (C) The work shall be strictly supervised, the Contractor bearing full responsibility for any and all acts or omissions of those engaged in the work on behalf of the Contractor;
- (D) The Contractor hereby warrants that all labor furnished under this Contract shall be competent to perform the tasks undertaken, that the product of such labor shall yield only first-class results, that all materials and equipment provided shall be new and of high quality, that the completed work will be complete, of high quality, without defects, and that all work strictly complies with the requirements of this Contract. Any work not strictly complying with the requirements of this Subparagraph shall constitute a breach of the Contractor's warranty;
- (E) The Contractor shall obtain and pay for all required permits, fees and licenses customarily obtained by the Contractor. The Contractor shall comply with all legal requirements applicable to the work;
- (F) The Contractor shall employ and maintain at the Project site only competent supervisory personnel. Key supervisory personnel assigned by the Contractor to this Project are as follows:

NAME

FUNCTION

So long as the individuals named above remain actively employed or retained by the Contractor, they shall perform the functions indicated next to their names unless the Owner agrees to the contrary in writing. In the event one or more individuals not listed above subsequently assumes one or more of those functions listed above, the Contractor shall be bound by the provisions of this Subparagraph 10(F) as though such individuals had been listed above;

- (G) The Contractor, within fifteen (15) days of commencing work, shall provide to the Owner and the Architect, and comply with, the Contractor's schedule for completing the work. Such schedule shall be in a form acceptable to the Owner. The Contractor's schedule shall be updated no less frequently than monthly (unless the parties otherwise agree in writing) and shall be updated to reflect conditions encountered from time to time and shall apply to the total Project. Each such revision shall be furnished to the Owner and the Architect. Strict compliance with the requirements of this Subparagraph 10(G) shall be a condition precedent to payment to the Contractor, and failure by the Contractor to strictly comply with said requirements shall constitute a material breach of this Contract;
- (H) The Contractor shall keep an updated copy of this Contract at the site. Additionally, the Contractor shall keep a copy of approved shop drawings and other submittals. All of these items shall be available to the Owner and the Architect at all times. Upon final completion of the work, all of these items shall be finally updated and provided to the Owner and shall become the property of the Owner;
- (I) Shop drawings and other submittals from the Contractor do not constitute a part of the Contract. The Contractor shall not do any work requiring shop drawings or other submittals unless such shall have been approved in writing by the Architect. All work requiring approved shop drawings or other submittals shall be done in strict compliance with such approved documents. However, approval by the Architect or the Owner shall not be evidence that work installed pursuant thereto conforms with the requirements of this Contract. The Owner and the Architect shall have no duty to review partial submittals or incomplete submittals. The Contractor shall maintain a submittal, the date of any approval or rejection, and the reason for any approval or rejection. The Contractor shall have the duty to carefully review, inspect and examine any and all submittals before submission of same to the Owner or the Architect;
- (J) The Contractor shall maintain the Project site in a reasonably clean condition during

performance of the work. Upon final completion, the Contractor shall thoroughly clean the Project site of all debris, trash and excess materials or equipment;

- (K) At all times relevant to this Contract, the Contractor shall permit the Owner and the Architect to enter upon the Project site and to review or inspect the work without formality or other procedure.

11.

INDEMNITY

The Contractor shall indemnify and hold the Owner harmless from any and all claims, liability, damages, loss, cost and expense of every type whatsoever including, without limitation, attorneys' fees and expenses, in connection with the Contractor's performance of this Contract, provided that such claims, liability, damage, loss, cost or expense is due to sickness, personal injury, disease or death, or to loss or destruction of tangible property (other than the work itself), including loss of use resulting therefrom, to the extent caused by the Contractor, or anyone for whose acts the Contractor may be liable, regardless of whether such liability, claim, damage, loss, cost or expense is caused in part by the Owner.

12.

THE PROJECT ARCHITECT

The architect for this Project is Village of Rockville Centre (The "Architect"). In the event the Owner should find it necessary or convenient to replace the Architect, the Owner shall retain a replacement architect and the role of the replacement architect shall be the same as the role of the Architect. Unless otherwise directed by the Owner in writing, the Architect will perform those duties and discharge those responsibilities allocated to the Architect in this Contract. The duties, obligations and responsibilities of the Architect shall include, but are not limited to, the following:

- (A) Unless otherwise directed by the Owner in writing, the Architect shall act as the Owner's agent from the effective date of this Contract until final payment has been made, to the extent expressly set forth in this Contract;
- (B) Unless otherwise directed by the Owner, the Owner and the Contractor shall communicate with each other in the first instance through the Architect;
- (C) When requested by the Contractor in writing, the Architect shall render interpretations necessary for the proper execution or progress of the work;

- (D) (This line left blank intentionally)
- (E) The architect shall approve, or respond otherwise as necessary concerning shop drawings or other submittals received from the Contractor;
- (F) The Architect shall be authorized to refuse to accept work which is defective or otherwise fails to comply with the requirements of this Contract. If the Architect deems it appropriate, the Architect shall be authorized to call for extra inspection or testing of the work for compliance with requirements of this Contract;
- (G) The Architect may review the Contractor's Payment Requests and shall approve in writing those amounts which, in the opinion of the Architect, are properly owing to the Contractor as provided in this Contract;
- (H) The Architect shall, upon written request from the Contractor, perform those inspections required in Paragraph 7 hereinabove;
- (I) The Architect shall be authorized to require the Contractor to make changes which do not involve a change in the Contract Price or in the time for the Contractor's performance of this Contract consistent with the intent of this Contract;
- (J) THE DUTIES, OBLIGATIONS AND RESPONSIBILITIES OF THE CONTRACTOR UNDER THIS CONTRACT SHALL IN NO MANNER WHATSOEVER BE CHANGED, ALTERED, DISCHARGED, RELEASED, OR SATISFIED BY ANY DUTY, OBLIGATION OR RESPONSIBILITY OF THE ARCHITECT. THE CONTRACTOR IS NOT A THIRD-PARTY BENEFICIARY OF ANY CONTRACT BY AND BETWEEN THE OWNER AND THE ARCHITECT. IT IS EXPRESSLY ACKNOWLEDGED AND AGREED THAT THE DUTIES OF THE CONTRACTOR TO THE OWNER ARE INDEPENDENT OF, AND ARE NOT DIMINISHED BY, ANY DUTIES OF THE ARCHITECT TO THE OWNER.

13.

SUBCONTRACTORS

No subcontracting allowed via this contract unless prior approval is granted by the Village of Rockville Centre. In addition, under no circumstances shall the contractor, subcontract more than fifty (50) percent of the total project, without prior consent from the Village.

14.

TERMINATION BY THE OWNER

The Owner may terminate this Contract in accordance with the following terms and conditions:

- (A) The Owner may, for any reason whatsoever, terminate performance under this Contract by the Contractor for convenience. The Owner shall give written notice of such termination to the Contractor specifying when termination becomes effective. The Contractor shall incur no further obligations in connection with the work and the Contractor shall stop work when such termination becomes effective. The Contractor shall also terminate outstanding orders and subcontracts. The Contractor shall settle the liabilities and claims arising out of the termination of subcontracts and orders. The Owner may direct the Contractor to assign the Contractor's right, title and interest under termination orders or subcontracts to the Owner or its designee. The Contractor shall transfer title and deliver to the Owner such completed or partially completed work and materials, equipment, parts, fixtures, information and Contract rights as the Contractor has.
- (B) If the Contractor does not perform the work, or any part thereof, in a timely manner, supply adequate labor, supervisory personnel or proper equipment or materials, or if it fails to timely discharge its obligations for labor, equipment and materials, or proceeds to disobey applicable law, or otherwise commits a violation of a material provision of this Contract, then the Owner, in addition to any other rights it may have against the Contractor or others, may terminate the performance of the Contractor and assume possession of the Project site and of all materials and equipment at the site and may complete the work. In such case, the Contractor shall not be paid further, if warranted, until the work is complete and a financial review is performed on the project by the Village.

15.

INSURANCE

The Contractor shall have and maintain insurance in accordance with the requirements cited in the Instructions to Bidders and incorporated herein by reference.

16.

SURETY BONDS

The Contractor shall furnish separate performance and payment bonds to the Owner. Each bond shall set forth a penal sum in an amount no less than the Contract Price. Each bond furnished by the Contractor shall incorporate by reference the terms of this Contract as fully as though they were set forth verbatim in such bonds. In the event the Contract Price is adjusted by Change Order executed by the Contractor, the penal sum of both the performance bond and the payment bond shall be deemed increased by like amount. The performance and payment bonds furnished by the Contractor shall be in form suitable to the Owner and shall be executed by a surety, or sureties, reasonably acceptable to the Owner.

17.

PROJECT RECORDS

All documents relating in any manner whatsoever to the Project, or any designated portion thereof, which are in the possession of the Contractor, or any subcontractor of the Contractor, shall be made available to the Owner or the Architect for inspection and copying upon written request by the Owner. Furthermore, said documents shall be made available, upon request by the Owner, to any state, federal or other regulatory authority and any such authority may review, inspect and copy such records. Said records include, but are not limited to, all drawings, plans, specifications, submittals, correspondence, minutes, memoranda, tape recordings, videos, or other writings or things which document the Project, its design, and its construction. Said records expressly include those documents reflecting the cost of construction to the Contractor.

18.

APPLICABLE LAW

The law is hereby agreed to be the law of the State where the Project is situated. This contract shall be enforced and interpreted pursuant to the law of the State of New York, regardless of any principles of conflict of laws. Any dispute arising out of or regarding this contract shall be resolved only in a court of the State of New York having appropriate jurisdiction in the County of Nassau, State of New York.

19.

SUCCESSORS AND ASSIGNS

Each party binds itself, its successors, assigns, executors, administrators or other representatives to the other party hereto and to successors, assigns, executors, administrators or other representatives of such other party in connection with all terms and conditions of this Contract. The Contractor shall not assign this Contract without prior written consent of the Owner.

OWNER

CONTRACTOR

APPROVED AS TO FORM:

A. T. Levin
Village Attorney

Date

APPROVED:

Gwynne Feiner
Director of Public Works

Date

Francis X. Murray, Mayor
Typed Name

Signature

One College Place, Rockville Centre, NY 11570

Date of Execution

Typed Name

Signature

Printed Name, Title

Address

Date of Execution

Seal

Seal

STATE OF NEW YORK)
COUNTY OF NASSAU) ss.:

On the _____ day of _____, 2026, before me personally came Francis X. Murray, to me known, who, being by me duly sworn, did depose and say that he is the Mayor of the Incorporated Village of Rockville Centre, the municipal corporation described in and which executed the foregoing instrument; that he knows the seal of said corporation; that the seal affixed to said instrument is such corporate seal; that it was so affixed by order of the Board of Trustees of said municipal corporation; and that he signed his name thereto by like order.

Notary Public

STATE OF NEW YORK)
COUNTY OF NASSAU) ss.:

On the _____ day of _____, 2026, before me personally came _____, to me known, who, being by me duly sworn, did depose and say that he is the _____ of _____, the corporation described in and which executed the foregoing instrument as their free and voluntary act and as the free and voluntary act of said corporation for the uses and purposes therein set forth.

GIVEN under my hand and notarial seal, this _____ day of _____, 2026.

Notary Public

My Commission expires: _____